Expert Knowledge in Antitrust Enforcement concerning Digital Markets: Between Economic Authority and Epistemic Power

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Bullet point summary:

- The article analyses the interplay between the economic authority of the enforcers and the epistemic power of the platforms, based on an empirical study of the use of expert evidence in the *Federal Trade Commission v. Meta Platforms, Inc*. case and the European Commission's decision in the Facebook/WhatsApp merger.
- The dogmatic part of the analysis demonstrates how recent case law developments at the Court of Justice of the European Union have resulted in standards concerning expert evidence aligning with Rule 702 of the Federal Rules of Evidence.
- The empirical study examines the references made in the selected cases to show how the epistemic power held by the platform and the economic authority held by the court and the European Commission shape the approach to the company's behavior.
- The findings show that in cases where the epistemic power of the platform is of high importance, exercising the economic authority of the court or of the enforcer depends heavily on the expertise provided by the platform.
- The article discusses two solutions to this challenge: the regulatory response and the measures that could be developed within an antitrust framework, such as expanding the understanding of expertise, including other stakeholders in proceedings, and developing the enforcers' in-house expertise.

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I. INTRODUCTION

On 18th November 2025, Judge James Boasberg of the U.S. District Court for the District of Columbia delivered a much-awaited ruling in the *Federal Trade Commission (FTC) v. Meta Platforms, Inc.* case.[1] The core issue in the case pertained to the designation of the relevant market, that is, the evaluation of evidence to ascertain whether TikTok and YouTube should be regarded as substitutes for social networking services provided by Facebook and Instagram.[2] The judge ruled in favor of the company on the grounds that the FTC had failed to demonstrate that Meta held a monopoly on the product market at the time of the trial.[3] Hence, it was neither the view on the role that antitrust should play in the digital markets nor the analysis of potential infringement that was the deciding factor in the outcome of this case, but rather the timing and the view on which services constitute the relevant market in the case. In January 2026, the FTC announced that it plans to appeal to the U.S. Court of Appeals for the District of Columbia.[4]

[1] *FTC v. Meta Platforms, Inc.*, 1:20-cv-03590, (D.D.C. Dec. 02, 2025) ECF No. 705 (mem.).
[2] The analysis of the evidence concerning the designation of the relevant market constitutes the most elaborate part of the ruling, *see Meta Platforms*, ECF No. 705, at 24–81.
[3] 'Whether or not Meta enjoyed monopoly power in the past, though, the agency must show that it continues to hold such power now.'—*Meta Platforms*, ECF No. 705, at 89.
[4] *See* Press Release, Fed. Trade Comm'n, *FTC Appeals Ruling in Meta Monopolization Case* (Jan. 20, 2026), https://www.ftc.gov/news-events/news/press-releases/2026/01/ftc-appeals-ruling-meta-monopolization-case.

This ruling is not the first time that the mergers initiated by Meta or its business practices have been subject to scrutiny by the authorities responsible for antitrust enforcement. It is important to note that both transactions—concerning WhatsApp and Instagram—were cleared by the FTC at the time,[5] and the merger between Meta and WhatsApp was deemed to be in accordance with the internal market by the European Commission (EC) in 2014.[6] Almost a decade later, in 2023, the EC, in its capacity as the 'sole enforcer'[7] of the Digital Markets Act (DMA),[8] designated Meta as a gatekeeper with regard to some of the services it provides, including online social networking services and number-independent interpersonal communications services.[9] The designation means that Meta is subject to the obligations and prohibitions set out in the DMA for gatekeepers—the largest tech companies that hold a strong position in relation to the types of services regulated by this legal act.[10] Last but not least, in April 2025, Meta's data processing practices were deemed incompatible with the DMA's provisions, in particular Article 5(2).[11]

In this article, the 2025 ruling and the EC's decisions are used to analyze how expert knowledge has been used in antitrust enforcement concerning digital markets in the United States and in the European Union. Whilst the debate concerning—to use the phrase of Daniel J. Gifford and Robert T. Kudrle—the 'Atlantic divide in antitrust'[12] has resulted in numerous

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[5] *See* Press Release, Fed. Trade Comm'n, *FTC Closes Its Investigation Into Facebook's Proposed Acquisition of Instagram Photo Sharing Program* (Aug. 22, 2012), https://www.ftc.gov/news-events/news/press-releases/2012/08/ftc-closes-its-investigation-facebooks-proposed-acquisition-instagram-photo-sharing-program and Press Release, Fed. Trade Comm'n, *FTC Notifies Facebook, WhatsApp of Privacy Obligations in Light of Proposed Acquisition* (Apr. 10, 2014), https://www.ftc.gov/news-events/news/press-releases/2014/04/ftc-notifies-facebook-whatsapp-privacy-obligations-light-proposed-acquisition.

[6] *See* Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision (Oct. 3, 2014), https://ec.europa.eu/competition/mergers/cases/decisions/m7217_20141003_20310_3962132_EN.pdf.

[7] Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act), art. 38(7), 2022 O.J. (L 265) 1, 56.

[8] Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act), 2022 O.J. (L 265) 1.

[9] For all the relevant decisions, *see* Case DMA.100035—Meta—Online Advertising Services, Comm's Decision (Sept. 5, 2023); Case DMA.100044—Meta—Online Intermediation Services—Marketplace, Comm's Decision (Sept. 5, 2023); Case DMA.100020—Meta—Online Social Networking Services, Comm's Decision (Sept. 5, 2023); Case DMA.100024—Meta—Number-Independent Interpersonal Communications Services, Comm's Decision (Sept. 5, 2023); Case DMA.100097—Meta—Number-Independent Interpersonal Communication Services—Messenger—Art. 7(1), Comm's Decision (Sept. 5, 2023).

[10] For an article comprehensively discussing the DMA and the category of 'gatekeeper', *see* Friso Bostoen, *Understanding the Digital Markets Act*, 68 ANTITRUST BULL. 263 (2023).

[11] Case DMA.100055—Meta—Article 5(2), Comm's Decision (Apr. 23, 2025) (summary: 2025 O.J. (C/2025/3466)), https://eur-lex.europa.eu/legal-content/EN/TXT/?qid=1775240071731&uri=CELEX%3A52025DMA100055.

[12] *See* DANIEL J. GIFFORD & ROBERT T. KUDRLE, THE ATLANTIC DIVIDE IN ANTITRUST: AN EXAMINATION OF US AND EU COMPETITION POLICY (2015).

comparative studies of these two legal orders,[13] the approach to the use of expertise—understood as external sources of knowledge treated as expert by the enforcer of the court—has not yet been comprehensively compared and empirically scrutinized. For the purpose of this analysis, I refer to the relevant regulation, case law, and empirical insights from the selected case and decisions. It is on the basis of these sources that the overarching research question of the article is addressed, namely, who is considered to be a source of expert knowledge in antitrust proceedings concerning digital markets? The present study will examine the selected decisions in order to ascertain how the expertise was used in the case of the *FTC v. Meta Platforms, Inc.* ruling and in Facebook/WhatsApp decision and how its use differs between the European Union and the United States.

This study posits the argument that the selected cases demonstrate the interplay between the use of economic authority[14] by the judiciary and the enforcers, and the epistemic power held by the platform in the form of, for example, data.[15] On the basis of the empirical analysis of *FTC v. Meta Platforms, Inc.* ruling I argue that what underlies the judge's decision concerning the designation of the relevant market is the economic evidence provided by experts using the epistemic power of the platforms. It is crucial to acknowledge the pivotal role that procedural rules—namely, the rules on the use of expert testimony—play in determining the use of economic authority and epistemic power within the context of legal proceedings. Within the U.S. legal order, the Federal Rules of Evidence, particularly Rule 702, which was most recently amended in 2023,[16] serve as the primary regulatory framework. In contrast, the European Union employs a combination of soft law principles established by the EC and judicial standards articulated by the Court of Justice of the European Union (CJEU).[17] The objective of the present comparison is to hypothesize—using the empirical analysis of the

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[13] For the study which made a comparison between the European Union and the United States with regard to antitrust and digital markets on the basis of a parallel case, *see*, e.g., Giorgio Monti, *Taming Digital Monopolies: A Comparative Account of the Evolution of Antitrust and Regulation in the European Union and the United States*, 67 ANTITRUST BULL. 40 (2022), and for a more general approach, focused on regulatory efforts in this regard, *see* Thomas Tombal, *Ensuring Contestability and Fairness in Digital Markets through Regulation: A Comparative Analysis of the EU, UK and US Approaches*, 18 EUR. COMPETITION J. 468 (2022). For studies that address the Atlantic divide at a more conceptual level, to which I will return later in the text, *see* Chase Foster, *Varieties of Neoliberalism: Courts, Competition Paradigms and the Atlantic Divide in Anti-Trust*, 20 SOCIO-ECON. REV. 1653 (2022) and Chase Foster & Kathleen Thelen, *Brandeis in BRUSSELS? Bureaucratic Discretion, Social Learning, and the Development of Regulated Competition in the EUROPEAN UNION*, 18 REGUL. & GOVERNANCE 1083 (2024).

[14] For this term, *see* John E. Lopatka & William H. Page, *Economic Authority and the Limits of Expertise in Antitrust Cases*, 90 CORNELL L. REV. 617 (2005) and further in the text.

[15] Often used as defendant's evidence in the analyzed U.S. case, or as a source of information used by the EC in its decisions.

[16] FED. R. EVID. 702.

[17] *See* Part III for the discussion of this regulatory framework.

selected case and the analysis of the regulatory framework—which characteristics of the analyzed legal systems influence their level of openness to new approaches to the analysis of competition in digital markets and limit the dependence on the epistemic power of the platforms.

To fulfil these aims, the article proceeds as follows: Part II presents the terminological and conceptual framework. Part III focuses on the regulatory framework, case law, and soft law impacting the use of expert knowledge in proceedings and Part IV presents the current state of empirical research on the use of expertise in antitrust. Part V describes the results of the empirical analysis of the selected documents, while Part VI concludes the analysis by discussing the selected case in the context of theoretical inspirations, existing empirical studies, and the regulatory framework.

II. EPISTEMIC POWER, ECONOMIC AUTHORITY, AND EXPERT KNOWLEDGE IN ANTITRUST PROCEEDINGS

The conceptual framework of this study is underpinned by three key terms: epistemic power, economic authority, and expert knowledge (which is employed interchangeably with the term 'expertise' in this work). All three of these phenomena are linked to knowledge, but they underscore varying aspects of knowledge production and use.

The broadest of these terms is 'epistemic power,' under which I understand the 'differing ranges of privilege and underprivilege that are co-extensive with one's epistemic status with respect to knowledge possession, knowledge attribution, knowledge production, and/or knowledge creation.'[18] Within the domain of the enforcement concerning digital markets,[19] epistemic power can be observed at the level of evidence collection, for example in the form of data, which can be considered as a form of knowledge possession (for example, when a company presents its own data on the number of users of its services) or knowledge production (for example, when an enforcer performs its own assessment of market shares based on collected data). In the context of legal proceedings, the entities involved may possess

[18] Kristie Dotson, *Accumulating Epistemic Power: A Problem with Epistemology*, 46 PHIL. TOPICS 129, 130–31 and 131 (2018) ("Epistemic status refers to positive or negative assessments of one's epistemic position, e.g., claims to (or ability to) know some proposition, *p*.").

[19] For work which concerns the epistemic power in the context of the regulation of digital markets, *see* Klaudia Majcher, *Epistemic Power of Platforms and EU Digital Law: Towards an Epistemic Welfare Paradigm* (Robert Schuman Ctr. for Advanced Stud. Rsch. Paper No. 2025/26, 2025), https://ssrn.com/abstract=5209728 or Mateusz Grochowski, *Wiedza—władza—dane. Nowy konsens epistemiczny w prawie rynku cyfrowego?* [Knowledge—Power—Data. A New Epistemic Consensus in Digital Market Law?], *in* ALMANACH CONCILIUM CIVITAS 2025/2026, at 101, 110–12 (Jacek Żakowski ed., 2025).

varying degrees of epistemic power regarding the subject under scrutiny. Within the framework of proceedings initiated by the FTC in a plaintiff capacity, the extent of the FTC's epistemic power is delineated by procedural norms that govern the collection of evidence (including that derived from the defendants) and the accessibility of alternative data sources beyond those of the defendant.[20] In comparison to the enforcer, the defendant may be considered to be in a position of privilege with regard to the epistemic power it holds concerning factual information on the given market. As illustrated by the Facebook/WhatsApp decision discussed in Part V, next to the enforcer and the parties, there are certain entities that have insights into the way that digital markets operate, e.g., data on the users of services and their behavior. These entities include, for example, competitors and companies that collect such market data. When juxtaposed with the positions of these various types of entities, the public is the least privileged, thereby holding marginal epistemic power with respect to the comprehension of the prevailing market dynamics.

In contrast to the term 'epistemic power,' the term economic authority has been coined strictly in the context of antitrust proceedings. It was introduced by John E. Lopatka and William H. Page, and is defined as 'a body of authoritative economic knowledge adopted by courts-directly or indirectly-from the scholarly literature.'[21] The inspiration for this term was drawn from the term 'social authority,'[22] introduced by John Monahan and Laurens Walker to illustrate the role that social science research plays in the creation of legal rules. Monahan and Walker advanced the argument that 'social science research, when used to create a legal rule, is more analogous to "law" than to "fact," and hence should be treated much as courts treat legal precedent.'[23] Lopatka and Page, in accordance with the direction indicated by Monahan and Walker, trace the impact of a particular type of social science research—economics—on a particular type of proceeding, namely, antitrust proceedings. They argue that: 'Courts jealously guard their prerogative both to select and to determine the use of the economic ideas guiding antitrust case outcomes. They are "gatekeepers" not only of the reliability of experts' economic data and methods under *Daubert*, but of the kinds of competing economic theories and policy arguments that matter.'[24] Consequently, their study demonstrates how the economic authority

[20] For an example of a discussion of this problem, resulting from the lack of data, *see* Part V on the EC's Facebook/WhatsApp proceeding.
[21] Lopatka & Page, *supra* note 14, at 619.
[22] John Monahan & Laurens Walker, *Social Authority: Obtaining, Evaluating, and Establishing Social Science in Law*, 134 U. PA. L. REV. 477 (1986).
[23] Monahan & Walker, *supra* note 22, at 478.
[24] Lopatka & Page, *supra* note 14, at 621.

of the courts shapes legal rules, which is an observation diverging from the approaches that focus on analyzing expert witness testimonies as supposedly 'objective.'

Despite the fact that the present study pertains to the use of sources that could, in a broader sense, be defined as social science, the objective of their employment is typically to facilitate analysis relevant to the assessment of the economic aspects of the case, and in particular designating relevant markets and measuring market shares. Consequently, I employ the term 'economic authority' to encapsulate their function in the proceedings. However, while the results of the study presented in this article constitute an intriguing case of the use of economic authority by the court and by the enforcer (EC), they also—thanks to the adopted methodology of data collection—provide insights into other sources of the expertise that the court or the enforcer considers in the proceedings.

The data collection for the purposes of this study was based on the adoption of a broad understanding of the expertise:[25] references to any kind of evidence in the analyzed decisions were selected, and on this basis, a catalogue of the types of sources considered as expertise was constructed (see Part V). This methodological approach enables checking which entities—for example, academics, think-tanks, competitors, consumer organizations or media—are regarded as sources of expert knowledge in the proceedings. Consequently, it is possible to address the question of who holds the epistemic power with regard to the enforcement of antitrust law. The primary focus of the identified sources is on economic analyses, statistical analyses, and the data used for the purpose of such analyses, as the foundations of the assessments conducted by the enforcers and courts. This prompts the question of the manner in which the courts and the enforcers employ their economic authority and what is the role that the external expertise and the epistemic power of the providers of such expertise plays in this process.

This approach differs from the way regulatory frameworks define expertise. As explained in Part III, experts are considered a specific type of witness and expert evidence is a specific type of evidence which is often subject to separate rules. However, as the empirical study presented in Part IV illustrates, multiple types of entities may, in practice, play a role in providing expertise on how the analyzed markets should be designated and their specific characteristics. This discrepancy between expert evidence as defined by law and the function of expertise in proceedings is a recurring theme in my discussion of the analysis results.

[25] For such an approach, *see* Joanna Mazur, *Who (And Why) Gets Cited by the Commission? The Role and Quality of Expert Knowledge in Google Antitrust Saga*, 19 EUR. COMPETITION J. 261 (2023).

III. CROSS-ATLANTIC ALIGNMENT OF THE APPROACH TO EXPERTISE USE IN ANTITRUST PROCEEDINGS

In 2005, the International Competition Network (ICN), the informal global network of competition authorities, adopted a document titled *ICN Investigative Techniques Handbook for Merger Review*.[26] The extensive document, which spans more than 70 pages, encompasses a range of considerations including economic methods[27] that should be employed during the course of conducting merger proceedings. The members of the Investigative Techniques Subgroup included representatives from the FTC, the DoJ, and the Directorate-General for Competition of the EC.[28] Until recently, the document was the only source of standards pertaining to the use of expertise in which preparation participated both the U.S. and EU antitrust enforcers. However, in 2024, the ICN Technologist Group issued a statement in which, inter alia, it recognized the need to strengthen enforcement efforts through increased technical capacity and expertise in the light of the digitization of the economy.[29] The aforementioned statement encompassed a point pertaining to technological expertise:

> 'It is essential that our agencies continue to strengthen digital and technological capacity to support agency missions and build the skills and capabilities of staff (in-house or in strategic collaborations, e.g., with universities).'[30]

This constitutes a clear encouragement for broadening the scope of cooperation with external experts. However, given the strictly advisory nature of the ICN's documents, the standards applied in the United States and in the European Union are subject to separate regulation, discussed below.

A. REGULATION OF THE USE OF EXPERTISE IN ANTITRUST ENFORCEMENT IN THE UNITED STATES

[26] *See* ICN, ICN INVESTIGATIVE TECHNIQUES HANDBOOK FOR MERGER REVIEW 46–51 (2005), https://www.internationalcompetitionnetwork.org/wp-content/uploads/2018/05/MWG_HBInvestigativeTechniques.pdf.
[27] *See* ICN, *supra* note 26, at 46–51.
[28] *See* ICN, *supra* note 26, at 46–51.
[29] *See* ICN TECHNOLOGIST GRP., TECHNOLOGIST FORUM STATEMENT ON BUILDING AGENCY DIGITAL CAPACITY (2024), https://www.internationalcompetitionnetwork.org/working-groups/icn-operations/technologists/technologist-forum-statement-on-building-agency-digital-capacity/.
[30] ICN TECHNOLOGIST GRP., *supra* note 29, pt. 5.

The judicial and regulatory approach to the use of expert evidence in the US law had undergone significant changes and has been the subject of numerous studies. The standard for the use of expert testimonies was first established by the *Frye v. United States* case,[31] which underscored the importance of expert evidence being based on acceptance within relevant professional community.[32] While the *Frye* standard still prevails in some states,[33] in 1975, the Federal Rules of Evidence came into effect,[34] thereby establishing the prevailing standards concerning expert testimonies, as evidenced by Rules 702, 703, and 706. In 1993, the Supreme Court issued a judgment in the *Daubert v. Merrell Dow Pharmaceuticals, Inc.* case,[35] which stated that '[....] Rule 702 supersedes Frye; thus, expert testimony admissibility depends on Rule 702,'[36] and provided the interpretation of the Federal Rules of Evidence which was subsequently codified in the amended form of Rule 702.[37] Additionally, Rule 26 of the Federal Rules of Civil Procedure, which took effect in 1993,[38] also regulates certain aspects of providing expert testimony, particularly with regard to its form and the information that should accompany such testimony, rather than its substantive content.[39]

Given the scope of this article, I will not discuss the case law developments and amendments to Rule 702 in much detail, as these have been widely covered in existing literature.[40] Instead, I will characterize the current regulatory framework, namely, the foundational provisions that regulate the use of expertise in antitrust proceedings in the United

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[31] 293 F. 1013 (D.C. Cir. 1923).

[32] See Clark Hedger, *Comment, Daubert and the States: A Critical Analysis of Emerging Trends*, 49 ST. LOUIS U. L.J. 177, 186–187 (2004).

[33] *See* Frederick Schauer & Barbara A. Spellman, *Is Expert Evidence Really Different?*, 89 NOTRE DAME L. REV. 1, 6 (2014).

[34] An Act to Establish Rules of Evidence for Certain Courts and Proceedings, Pub. L. No. 93-595, 88 Stat. 1926 (1975) (codified as amended at 28 U.S.C. app.).

[35] 509 U.S. at 582 (1993).

[36] Archibald Cruz, *The Paradigm Shift in the Proposed Amendment to Federal Rule of Evidence 702,* 75 BAYLOR L. REV. 265, 270 (2023).

[37] For the summary of the shift from the *Frye* standard to *Daubert* standard, *see* Nicola Giocoli, *Rejected! Antitrust Economists as Expert Witnesses in the Post-*Daubert *World*, 42 J. HIST. ECON. THOUGHT 203, 204–05 (2020) and Molly L. Zohn, *How Antitrust Damages Measure up With Respect to the Daubert Factors*, 13 GEO. MASON L. REV. 697, 698–99 (2005).

[38] *See* Andrew I. Gavil, *After Daubert: Discerning the Increasingly Fine Line Between the Admissibility and Sufficiency of Expert Testimony in Antitrust Litigation*, 65 ANTITRUST L.J. 663, 664 (1997).

[39] FED. R. CIV. P. 26. As Gavil puts it: 'Whereas disclosure and discovery provide the parties with basic information about the identity, qualifications, and opinions of testifying experts, Rule 702 provides a basis for testing that testimony to determine whether it is admissible, that is, whether any fact finder—judge or jury—will ever consider it.'—Andrew I. Gavil, *The Challenges of Economic Proof in a Decentralized and Privatized European Competition Policy System: Lessons From the American Experience*, 4 J. COMPETITION L. & ECON. 177, 188 (2007).

[40] For the relevant work, taking into consideration the most recent amendments, *see* Cruz, *supra* note 36, Mark A. Behrens & Andrew J. Trask, *Federal Rule of Evidence 702: A History and Guide to the 2023 Amendments Governing Expert Evidence*, 12 TEX A&M. L. REV. 43 (2024), and Recent Rule, *Federal Rule of Evidence 702. Judicial Conference Amends Rule 702*, 138 HARV. L. REV. 899 (2025).

States: Rule 702 of the Federal Rules of Evidence, last amended in 2023,[41] the '*Daubert* requirements' or 'factors' that have been codified in this Rule, Rule 703, and Rule 706. The latter is of lower significance for the analysis, as it is rarely used. Finally, I will characterize Rule 26 of the Federal Rules of Civil Procedure. While not specific only to antitrust proceedings, these rules constitute the regulatory framework governing the use of expert knowledge in such cases.

Rule 702 concerns testimony by expert witnesses.[42] It refers to witnesses who are 'qualified as an expert by knowledge, skill, experience, training, or education.'[43] This suggests a broad understanding of the grounds on which expertise may be based: an expert witness does not necessarily have to hold a degree in the given field, but may, e.g., have a professional experience that qualifies them as an expert.[44] Since the 2023 amendments came into effect, the admissibility of expert testimony depends on the proponent demonstrating to the court that 'it is more likely than not'[45] to fulfill the requirements set in Rule 702.

These requirements include four factors. Firstly, the 'the expert's scientific, technical, or other specialized knowledge will help the trier of fact to understand the evidence or to determine a fact in issue.'[46] Secondly, the testimony must be based on sufficient facts or data. Thirdly, it must be based on the application of 'reliable principles and methods.'[47] Fourthly, the testimony must constitute 'a reliable application of the principles and methods to the facts of the case.'[48] These four requirements, with the first adopted in the 1975 version of the Federal Rules of Evidence and the latter three added as a result of the *Daubert* case in the 2000

[41] The amendments were initiated by the Supreme Court and went into effect on the 1st of December 2023, *see* ORDER AMENDING FEDERAL RULES OF EVIDENCE (U.S. Apr. 24, 2023), https://www.supremecourt.gov/orders/courtorders/frev23_5468.pdf.
[42] FED. R. EVID. 702: 'A witness who is qualified as an expert by knowledge, skill, experience, training, or education may testify in the form of an opinion or otherwise if the proponent demonstrates to the court that it is more likely than not that:
(a) the expert's scientific, technical, or other specialized knowledge will help the trier of fact to understand the evidence or to determine a fact in issue;
(b) the testimony is based on sufficient facts or data;
(c) the testimony is the product of reliable principles and methods; and
(d) the expert's opinion reflects a reliable application of the principles and methods to the facts of the case.
(As amended Apr. 17, 2000, eff. Dec. 1, 2000; Apr. 26, 2011, eff. Dec. 1, 2011; Apr. 24, 2023, eff. Dec. 1, 2023.)'
[43] FED. R. EVID. 702.
[44] This issue may be linked with the studies on expertise performed by sociologists, who refer to the variety of categories of expertise, including expertise based on experience. For the seminal work on this topic, *see* HARRY COLLINS & ROBERT EVANS, RETHINKING EXPERTISE (2008).
[45] FED. R. EVID. 702. See also Recent Rule, *supra* note 40, at 899.
[46] FED. R. EVID. 702(a).
[47] FED. R. EVID. 702(c).
[48] FED. R. EVID. 702(d).

amendments to Rule 702,[49] remained almost[50] unchanged in 2023. Therefore, the indications presented by the Supreme Court in *Daubert* concerning the ways in which the requirements may be tested still seem to be important. These include five factors that may be considered when deciding on the admissibility of expert testimony concerning the theories and techniques used for this purpose, namely whether they can be tested, whether they have been peer-reviewed and published, their known or potential error rate, the standards for controlling the use of the given technique, and the level of acceptance within the scientific community.[51] However, these factors should be perceived as 'providing *possible* methods of evaluating admissibility,'[52] rather than as a closed catalogue of ways to scrutinize the reliability of the evidence.

Regardless of whether *Daubert*'s impact is viewed as positive or negative, it represented a significant development in the handling of expert evidence in the United States. Some argue that while it created challenges, it also serves as a tool for judges to gatekeep unreliable evidence.[53] Others note that it limits the power of other types of evidence at the expense of expert testimony. For example, Sheila Jasanoff links *Daubert* to the 'effort to make judicial practice more scientific'[54] and 'increasingly powerful impetus of the law and economics movement,'[55] presenting it as a 'technocratic turn'[56] in the approach to evidence. Moreover, concerns have been raised, especially with regard to economic evidence, about the degree to which it might be perceived as presenting opinion rather than knowledge.[57] As Andrew I. Gavil notes, '[i]t is doubtful that much economic testimony would survive a literal application of the *Daubert* factors,'[58] as one could argue, for example, that economics is not an

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[49] Recent Rule, *supra* note 40, at 900.
[50] However, the phrasing of the fourth requirement was changed from (d) the expert has reliably applied… to (d) the expert's opinion reflects a reliable application of the principles and methods to the facts of the case in 2023 amendments, see Cruz, *supra* note 36, at 268.
[51] *See Daubert*, 509 U.S. at 593–94.
[52] Roger D. Blair & Jill Boylston Herndon, *The Implications of Daubert for Economic Evidence in Antitrust Cases*, 57 WASH. & LEE L. REV. 801, 806 (2000).
[53] *See* Blair & Herndon, *supra* note 52, at 829–30: 'In an ironic twist, the heightened awareness raised by Daubert actually has resulted in a plethora of challenges. [...] In either event, unreliable expert testimony will not determine the outcome of the case. This is as it should be.'
[54] Sheila Jasanoff, *Law's Knowledge: Science for Justice in Legal Settings*, 95 AM. J. PUBLIC HEALTH S49, S50 (2005).
[55] Jasanoff, *supra* note 54, at S50.
[56] Sheila Jasanoff, *Science and the Statistical Victim: Modernizing Knowledge in Breast Implant Litigation*, 32 SOC. STUD. SCI. 37, 64 (2002).
[57] Such doubts are not new. For an example of the judge's own concerns regarding the role that an economist played in a particular case from the early 1950s, *see* SHEILA JASANOFF, SCIENCE AT THE BAR: LAW, SCIENCE AND TECHNOLOGY IN AMERICAN LAW 66–67 (1995).
[58] Gavil, *supra* note 38, at 673. *See* also 'The Daubert decision reflects a traditional conception of the scientific method, in which science proceeds by the generation of new hypotheses, the development of experiments that generate data with which to test them, and validation of the results through repetition. This may be a good model

exact science and that '[c]hoosing between economic theories is as much an act of politics as of science.'[59] However, this is not how it is perceived in judicial practice. Empirical evidence, which I discuss in Part IV, shows that economic reports are commonly used as expert evidence under *Daubert.* This does not necessarily mean that their testimony is relevant to the decision made in the given case, as 'antitrust economists testifying for the plaintiff have approximately a one-in-two chance that at least part of their opinion will be excluded—an abnormal percentage in comparison with other disciplines, including other areas within economics.'[60] However, it does confirm the widespread use of economic expertise as expert testimony under Rule 702.

The next rule in the series governing the use of expert evidence is Rule 703, which relates to the basis of an expert's opinion testimony.[61] Rule 702 covers the methods and techniques employed by experts, but it 'does not apply to the later stages in the expert's chain of reasoning, namely the case-specific assumptions.'[62] These are governed by Rule 703. Rule 703 requires that experts may base their opinions on facts or data of which they have been made aware or which they have personally observed.[63] It permits experts in a particular field to use facts or data that do not need to be admissible in order for their opinion to be admitted, provided that they would reasonably rely on those kinds of facts or data when forming an opinion on the subject.[64]

The use of expert testimony proposed by the parties to the proceedings has raised numerous doubts, leading academics to suggest that another Federal Rule of Evidence, Rule

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of laboratory physics or chemistry (and being neither physicists nor chemists, we cannot say for certain), but it is not a good model of economics.'—John L. Solow & Daniel Fletcher, *Doing Good Economics in the Courtroom: Thoughts on Daubert and Expert Testimony in Antitrust*, 31 J. CORP. L. 489, 494 (2006).

59 Michael S. Jacobs, *An Essay on the Normative Foundations of Antitrust Economics*, 74 N.C. L. REV. 219, 265 (1995): 'In that world, the expanded range of economic theory available to antitrust decisionmakers would make explicit what is now largely obscure: Choosing between economic theories is as much an act of politics as of science. Antitrust and constitutional law may not be so different after all.'

60 Nicola Giocoli, *Rejected! Antitrust Economists as Expert Witnesses in the Post-Daubert World*, 42 J. HIST. ECON. THOUGHT 203, 210 (2020).

61 FED. R. EVID. 703: 'An expert may base an opinion on facts or data in the case that the expert has been made aware of or personally observed. If experts in the particular field would reasonably rely on those kinds of facts or data in forming an opinion on the subject, they need not be admissible for the opinion to be admitted. But if the facts or data would otherwise be inadmissible, the proponent of the opinion may disclose them to the jury only if their probative value in helping the jury evaluate the opinion substantially outweighs their prejudicial effect.
(As amended Mar. 2, 1987, eff. Oct. 1, 1987; Apr. 17, 2000, eff. Dec. 1, 2000; Apr. 26, 2011, eff. Dec. 1, 2011.)'

62 Edward J. Imwinkelried, *The Meaning of "Facts or Data" in Federal Rule of Evidence 703: The Significance of the Supreme Court's Decision to Rely on Federal Rule 702 in Daubert v. Merrell Dow Pharmaceuticals, Inc.*, 54 MD. L. REV. 352 (1995).

63 FED. R. EVID. 703.

64 FED. R. EVID. 703.

706,[65] which allows judges to appoint their own experts,[66] might be the solution. However, despite calls for its use from academics [67] and others,[68] the rule does not seem to be applied often by the courts, who are reluctant to appoint their own experts.[69]

Additionally, as mentioned above, Rule 26 of the Federal Rules of Civil Procedure sets out certain requirements regarding the format of expert evidence provided to the court.[70] Among other things, it requires the evidence to be submitted in the form of a written report, 'unless otherwise stipulated or ordered by the court.'[71] Such a report must present multiple types of information, including a complete statement of all opinions that the witness will express, the basis for these opinions, the facts or data considered by the witness, any exhibits that will be used to summarize or support these facts or data, the witness's qualifications (including a list of all publications authored in the previous 10 years), a list of all other cases

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[65] FED. R. EVID. 706: '(a) APPOINTMENT PROCESS. On a party's motion or on its own, the court may order the parties to show cause why expert witnesses should not be appointed and may ask the parties to submit nominations. The court may appoint any expert that the parties agree on and any of its own choosing. But the court may only appoint someone who consents to act.
(b) EXPERT'S ROLE. The court must inform the expert of the expert's duties. The court may do so in writing and have a copy filed with the clerk or may do so orally at a conference in which the parties have an opportunity to participate. The expert:
(1) must advise the parties of any findings the expert makes;
(2) may be deposed by any party;
(3) may be called to testify by the court or any party; and
(4) may be cross-examined by any party, including the party that called the expert.
(c) COMPENSATION. The expert is entitled to a reasonable compensation, as set by the court. The compensation is payable as follows:
(1) in a criminal case or in a civil case involving just compensation under the Fifth Amendment, from any funds that are provided by law; and
(2) in any other civil case, by the parties in the proportion and at the time that the court directs—and the compensation is then charged like other costs.
(d) DISCLOSING THE APPOINTMENT TO THE JURY. The court may authorize disclosure to the jury that the court appointed the expert.
(e) PARTIES' CHOICE OF THEIR OWN EXPERTS. This rule does not limit a party in calling its own experts. (As amended Mar. 2, 1987, eff. Oct. 1, 1987; Apr. 26, 2011, eff. Dec. 1, 2011.)'
[66] See sources in Rebecca Haw, *Adversarial Economics in Antitrust Litigation: Losing Academic Consensus in the Battle of the Experts*, 106 NW. U. L. REV. 1261, 1294 (2012).
[67] E.g., 'To make life easier for judges, a solution too rarely adopted is for the court to appoint its own neutral economic expert under Rule 706 of the Federal Rules of Evidence.'—Edoardo Peruzzi, *Models on Trial: Antitrust Experts Face Daubert Challenges*, 30 J. ECON. METHODOLOGY 337, 347 (2023) or 'This article has identified several basic means to improve the objectivity of antitrust litigation through participation by economic experts isolated from the litigants. Some of these methods envision increased reliance on court-appointed experts, and others envision sources of economic expertise supplied entirely independent of both the judiciary and the agencies.'—Abbott B. Lipsky, Jr., *Antitrust Economics—Making Progress, Avoiding Regression*, 12 GEO. MASON L. REV. 163, 177 (2003).
[68] For an article written by a person with an experience as a court-appointed expert, arguing for a broader use of the rule, *see* J. Gregory Sidak, *Court-Appointed Neutral Economic Experts* 9 J. COMPETITION L. & ECON. 359 (2013).
[69] Even though there does not seem to be recent data on the topic. For the available data, *see* JOE S. CECIL & THOMAS E. WILLGING, COURT-APPOINTED EXPERTS: DEFINING THE ROLE OF EXPERTS APPOINTED UNDER FEDERAL RULE OF EVIDENCE 706, at 8 (1993), https://www.fjc.gov/sites/default/files/2012/Experts.pdf.
[70] *See* Gavil, *supra* note 39, at 186–188.
[71] This is a shortened version of the catalogue from FED. R. CIV. P. 26(2)(B).

in which the witness has testified as an expert during the previous four years, and a statement of the compensation to be paid for the study and testimony in the given case.[72] This list of specific requirements, as I explain below, is an important difference between the regulatory framework governing the use of expert evidence in the United States and that governing this issue in EU competition law. Rule 26 of the Federal Rules of Civil Procedure also allows for the possibility of consulting an expert who will not testify as a witness at trial.[73] However, it is impossible to trace the participation of such consulting experts in the case on the basis of available documents.

Although the empirical analysis in Part IV focuses on the court's ruling, it is worth briefly outlining the relevant procedural rules governing the use of expertise in proceedings conducted by the FTC and DoJ. While a detailed analysis of antitrust law enforcement in the United States is beyond the scope of this article,[74] it is worth mentioning the Merger Guidelines adopted in 2023, especially as they show more similarity to the approach of the EU.[75] As will be explained below, while the European Union does not have a regulatory framework specifically governing the use of expert evidence in EC proceedings concerning competition law, it does have soft law on this issue. In this sense, the inclusion of the section on 'Analytical, Economic, and Evidentiary Tools'[76] in the Merger Guidelines mirrors the EU's approach. Among the sources of evidence that might be used by enforcers, such as merging parties and transaction terms, econometric analysis, and economic modelling are mentioned. With regard to these, the Merger Guidelines note that:

> 'The Agencies give more weight to analysis using high quality data and adhering to rigorous standards. But the Agencies also take into account that in some cases, the availability or quality of data or reliable modeling techniques might limit the availability and relevance of econometric modeling.'[77]

This demonstrates an awareness of the limitations of economic analysis and the importance of data quality in proceedings. Interestingly, the Merger Guidelines also refer to customers, workers, industry participants, and observers, including consultants and industry analysts, as

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72 FED. R. CIV. P. 26(2)(B).
73 FED. R. CIV. P. 26(4)(D).
74 Such a complex analysis would require presenting both the civil and proceedings, as well as the specific rules resulting from the antitrust law, e.g., administrative adjudications. For relevant literature, *see* Chapter 8 in DOUGLAS BRODER, U.S. ANTITRUST LAW AND ENFORCEMENT: A PRACTICE INTRODUCTION 175–96 (2010) or DANIEL A. CRANE, THE INSTITUTIONAL STRUCTURE OF ANTITRUST ENFORCEMENT (2011).
75 U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, MERGER GUIDELINES (2023) https://www.ftc.gov/system/files/ftc_gov/pdf/2023_merger_guidelines_final_12.18.2023.pdf.
76 *See* U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, *supra* note 75, at 34–35.
77 *See* U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, *supra* note 75, at 34.

potentially useful sources of information for enforcers. Compared to previous versions, the 2023 Merger Guidelines are the most detailed in terms of indicating sources of evidence, which suggests the growing importance of this topic in antitrust proceedings.[78]

Furthermore, the circumstances surrounding the recent amendments to the rules governing the disclosure of documents in US merger proceedings are directly relevant to the subject of this text. The amendment to the rules implementing the Hart-Scott-Rodino (HSR) Act, adopted in 2024,[79] was questioned in proceedings that ended with a ruling declaring them vacant.[80] However, this ruling was appealed, and the court decided that the rules should apply while the case is pending.[81] What is crucial is that the motivation behind adopting the amendments is directly related to the subject of this analysis: mitigating the epistemic power of companies. As the FTC explained:

> 'From this accumulated experience, the agencies identified critical gaps in the information provided in the form that, over time, have impeded the detection of mergers that may violate the antitrust laws. The final rule requires filers to provide information that is readily available to them about their business operations to allow the agencies to accurately and effectively fulfill their mandate to screen reportable transactions before they close.'[82]

Although the agencies collect information on mergers through documents filed by firms, second requests,[83] and voluntary interviews,[84] it was considered necessary to introduce more specific rules to facilitate this process.

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[78] Compare with the 2020 and 2010 versions of, respectively, U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, VERTICAL MERGER GUIDELINES (2020) https://www.justice.gov/atr/page/file/1290686/dl?inline and U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, HORIZONTAL MERGER GUIDELINES (2010) https://www.justice.gov/atr/file/810276/dl?inline.

[79] *See* Press Release, Fed. Trade Comm'n, *FTC Finalizes Changes to Premerger Notification Form* (Oct. 10, 2024) https://www.ftc.gov/news-events/news/press-releases/2024/10/ftc-finalizes-changes-premerger-notification-form and Premerger Notification; Reporting and Waiting Period Requirements, 16 C.F.R. § 801, 803 (2024), https://www.federalregister.gov/documents/2024/11/12/2024-25024/premerger-notification-reporting-and-waiting-period-requirements.

[80] *See* Chamber of Com. of the U.S. v. FTC, No. 6:25-cv-9-JDK (E.D. Tex. Feb. 12, 2026), https://sponsors.aha.org/rs/710-ZLL-651/images/02132026_175115185841.pdf?version=0.

[81] *See* Chamber of Com. of the U.S. v. FTC, No. 26-40094 (5th Cir. Feb. 19, 2026), https://www.skadden.com/-/media/files/publications/2026/02/federal-district-court-in-texas-tosses-ftcs-2025-hsr-filing-rules/2640094_documents-united-states-court-of-appeals.pdf.

[82] Press Release, Fed. Trade Comm'n, *supra* note 79.

[83] *See* Hart-Scott-Rodino Antitrust Improvements Act of 1976, 15 U.S.C. § 18a (2018 & Supp. V 2024) https://www.govinfo.gov/app/details/USCODE-2024-title15/USCODE-2024-title15-chap1-sec18a.

[84] *See* FED. TRADE COMM'N, *Guidance for Voluntary Submission of Documents During the Initial Waiting Period*, https://www.ftc.gov/enforcement/premerger-notification-program/hsr-resources/guidance-voluntary-submission-documents and U.S. DEP'T OF JUST., *Merger Review Process Initiative* (2001, rev. 2006), https://www.justice.gov/atr/merger-review-process-initiative-policy.

At the same time, the FTC announced the launch of an online portal to facilitate the collection of comments from a range of stakeholders:

> '[...] for market participants, stakeholders, and the general public to directly submit comments on proposed transactions that may be under review by the FTC. The Commission welcomes information on specific transactions and how they may affect competition from consumers, workers, suppliers, rivals, business partners, advocacy organizations, professional and trade associations, local, state, and federal elected officials, academics, and others.'[85]

Such openness to feedback from various stakeholders, as was also the case with the Merger Guidelines, indicates the adoption of a broader perspective on who may be considered an expert on antitrust matters, a topic I will return to in the following parts of this article.

B. Regulation of the Use of Expertise in Antitrust Enforcement in the EU

At the EU level, there are two main regulations that govern the enforcement of competition law: *Council Regulation (EC) No 1/2003 of 16 December 2002 on the implementation of the rules on competition laid down in Articles 81 and 82 of the Treaty*—Regulation 1/2003,[86] which concerns proceedings relating to prohibited agreements and abuse of dominance, and *Council Regulation (EC) No 139/2004 of 20 January 2004 on the control of concentrations between undertakings*—the Merger Regulation.[87] In contrast to the United States, in the European Union these rules have been specifically adopted for the purposes of conducting antitrust proceedings. Both regulations include provisions allowing the EC to require undertakings and associations of undertakings to provide all necessary information by simple request or by request by decision.[88] The EC may request various types of information, e.g. documents or data, and it is at the EC's discretion how it defines the scope of a given request for information (RFI).[89] Importantly, RFIs may be addressed not only to companies whose behavior is under

[85] Press Release, Fed. Trade Comm'n, *supra* note 79.
[86] Council Regulation No. 1/2003, 2003 O.J. (L 1) 1 (on the implementation of the rules on competition laid down in Articles 81 and 82 of the Treaty), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex:32003R0001.
[87] Council Regulation No 139/2004, 2004 O.J. (L 24) 1 (on the control of concentrations between undertakings), https://eur-lex.europa.eu/legal-content/en/TXT/?uri=CELEX:32004R0139 [hereinafter *Merger Regulation*]
[88] *See* Council Regulation 1/2003, art. 18, 2003 O.J. (L 1) 1, 13–14 and *Merger Regulation*, art. 11, 2004 O.J. (L 24) 1, 13–14.
[89] *See* Eur. Comm'n, *Commission Notice on Best Practices for the Conduct of Proceedings Concerning Articles 101 and 102 TFEU*, 2011 O.J. (C 308) 13, ¶ 34, https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52011XC1020%2802%29 [hereinafter *Best Practices Notice*].

scrutiny, but also to other companies[90] (e.g., competitors or customers), as well as to Member States.[91] The EC may also interview natural and legal persons,[92] hold hearings,[93] as well as carry out inspections.[94]

Neither of these two legal acts explicitly addresses the possibility of experts (e.g., economists) participating in the proceedings. Their opinions or reports may be submitted by the parties or third parties on the basis of the general rules presented above. These legal acts are also accompanied by several soft law documents, such as *Best Practices for the Submission of Economic Evidence and Data Collection in Cases Concerning the Application of Articles 101 and 102 TFEU and in Merger Cases*.[95] This document sets out standards for data and analyses to be used in proceedings. However, it does not specify who should be requested to provide such data or analyses. More recently, manuals of procedures have also been adopted by the EC for both types of proceedings: *Antitrust manual of procedures: Internal DG Competition working documents on procedures for the application of Articles 101 and 102 TFEU* (the Antitrust manual),[96] and *DG Competition's manual of procedures for the application of the EU Merger Regulation* (the Merger manual).[97]

The Antitrust manual contains a section on 'informal fact-finding,'[98] which involves gathering information on companies and industries, as well as relevant literature, news, and statistics, from commercial databases and EC library resources. Another option is to commission studies from external experts and other EC services (e.g., Eurostat). Information may also be gathered from the NCAs and during informal meetings with undertakings. In

90 *See* Eur. Comm'n, *Best Practices Notice*, 2011 O.J. (C 308) 13, ¶ 32.
91 *See* Council Regulation 1/2003, art. 18(6), 2003 O.J. (L 1) 1, 14; *Merger Regulation*, art. 11(6), 2004 O.J. (L 24) 1, 14.
92 *See* Council Regulation 1/2003, art. 19(1), 2003 O.J. (L 1) 1, 14; *Merger Regulation*, art. 11(7), 2004 O.J. (L 24) 1, 14.
93 *See* Council Regulation 1/2003, art. 27, 2003 O.J. (L 1) 1, 19; *Merger Regulation*, art. 18, 2004 O.J. (L 24) 1, 16.
94 *See* Council Regulation 1/2003, art. 20 and art. 21, 2003 O.J. (L 1) 1, 14–16; *Merger Regulation*, art. 13, 2004 O.J. (L 24) 1, 14–15.
95 *See* Eur. Comm'n, *Commission Staff Working Paper: Best Practices for the Submission of Economic Evidence and Data Collection in Cases Concerning the Application of Articles 101 and 102 TFEU and in Merger Cases*, SEC (2011) 1216 final (Oct. 17, 2011), https://eur-lex.europa.eu/legal-content/en/TXT/?uri=CELEX:52011SC1216.
96 *See* EUR. COMM'N, ANTITRUST MANUAL OF PROCEDURES: INTERNAL DG COMPETITION WORKING DOCUMENTS ON PROCEDURES FOR THE APPLICATION OF ARTICLES 101 AND 102 TFEU mod. 6, § 1.1(1) (2019), https://competition-policy.ec.europa.eu/antitrust-and-cartels/procedures/procedures-manual_en [hereinafter *Antitrust manual*]. Since August 2024 the Commission has been updating the Manual—the results of these updates can be found under the same link.
97 *See* EUR. COMM'N, DG COMPETITION'S MANUAL OF PROCEDURES FOR THE APPLICATION OF THE EU MERGER REGULATION (2024), https://competition-policy.ec.europa.eu/mergers/procedures/procedures-manual_en [hereinafter *Merger manual*].
98 *See* EUR. COMM'N, *supra* note 96, mod. 6, § 1.1(1).

contrast, the Merger manual primarily focuses on RFIs and the standards that information provided by the parties should fulfil.[99] However, it also refers to the possibility of commissioning external studies.[100] It emphasizes that '[…] the results of a study commissioned in connection with proceedings as well as documents that are necessary to understand the methodology applied in the study or to test its technical correctness are accessible,'[101] whereas studies ordered by information providers:

> 'can be considered as part of that company's property and do not need to be made accessible if the company in question has requested the document not to be disclosed. It is however clear that, in case the Commission has relied on such studies to make its assessment, submission of a non-confidential version of the study is required.'[102]

The references to these types of documents are the most relevant for the use of expertise in EU merger proceedings. However, they do not address the question of which entities or individuals should be considered as potential providers of such analyses.

An overview of the EU's regulatory framework reveals that expert evidence is not directly addressed in existing legal acts. Nor is it comprehensively discussed in soft law documents. However, certain standards concerning this issue have recently been developed in the case law of the CJEU. While the CJEU has grappled with the issue of the standards of evidence in competition proceedings for some time now,[103] it—and in particular the General Court (GC)—only addressed the question of expert evidence in 2011 in the case of *Siemens AG v European Commission*.[104] The GC found that a report based on a company's data, it has been paid for by the company and not subjected to independent assessment may not be

[99] *See* EUR. COMM'N, *supra* note 97, mod. 4, pt. 37(g).
[100] *See* EUR. COMM'N, *supra* note 97, mod. 4, pt. 136.
[101] *See* EUR. COMM'N, *supra* note 97, mod. 4, pt. 180.
[102] *See* EUR. COMM'N, *supra* note 97, mod. 4, pt. 178.
[103] For comprehensive overview of the CJEU's case law on evidence in EU competition law, *see* ANDRIANI KALINTIRI, EVIDENCE STANDARDS IN EU COMPETITION ENFORCEMENT: THE EU APPROACH (2019) and FERNANDO CASTILLO DE LA TORRE & ERIC GIPPINI FOURNIER, EVIDENCE, PROOF AND JUDICIAL REVIEW IN EU COMPETITION LAW (2d ed. 2024).
[104] Case T-110/07, Siemens AG v. Comm'n, 2011 E.C.R. II-68 (GC), https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=ecli:ECLI%3AEU%3AT%3A2011%3A68.

'regarded as a neutral and independent expert report'[105] and should therefore be treated as coming from the party rather than an external expert.[106]

It was not until the 2022 *Google Android* judgment that the CJEU developed a more comprehensive catalogue of criteria for the requirements that expert sources should fulfil. The judgment refers to 'statements or reports submitted—at a party's request to support its claims—by a third party on the basis of the latter's status as expert.'[107] When assessing such documents, the enforcer should consider whether: (1) the qualifications and experience of the authors are set out; (2) the relevance of the authors' qualifications and experience to the provision of the opinion is explained; (3) the reasons why the opinion should be taken into account in terms of the reliability of the methodology used are presented; and (4) the reasons why the answer given to the question is relevant to the case are explained.[108]

These specific standards should be considered alongside the EC's general approach to its evidentiary obligations. On the one hand, the EC has a wide margin of discretion regarding the manner in which evidence is collected, for example, in terms of the selection of the addressees of the RFIs. However, on the other hand, it is the EC's obligation to develop a body of evidence which, 'viewed as a whole,'[109] meets the standard of proof.[110] This is in contrast to the United States, where the emphasis is more on the quality of each piece of evidence. Moreover, the duty of care obliges the EC firstly to take into account 'facts and the information

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[105] Case T-110/07, Siemens AG v. Comm'n, 2011 E.C.R. II-68, ¶ 137 (GC), https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=ecli:ECLI%3AEU%3AT%3A2011%3A68. For a similar reasoning, *see* Case T-112/07, Hitachi Ltd v. Comm'n, 2012 E.C.R. II-342, ¶ 320 (GC), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=ecli:ECLI:EU:T:2011:342.

[106] In another case, the GC noted that any prior cooperation between the expert and the party in question should be considered when assessing the expert's independence, *see* Case T-409/12, Mitsubishi Elec. Corp. v. Comm'n, ECLI:EU:T:2016:17, ¶ 173 (GC Jan. 19, 2016), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A62012TJ0409.

[107] *See* Case T-604/18, Google LLC v. Comm'n, ECLI:EU:T:2022:541, ¶ 96 (GC Sept. 14, 2022), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A62018TJ0604.

[108] *See* Case T-604/18, Google LLC v. Comm'n, ECLI:EU:T:2022:541, ¶ 96 (GC Sept. 14, 2022), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A62018TJ0604: 'Similarly, as regards the statements or reports submitted – at a party's request to support its claims – by a third party on the basis of the latter's status as expert, it should be noted that the probative value of such documents is assessed in several respects. The author must ensure that he or she sets out his or her qualifications and experience and explains how they are relevant to his or her providing an opinion on the question under consideration. Moreover, in terms of its content the opinion must set out the reasons why it should be taken into consideration, whether as regards the reliability of the methodology used or the relevance of the answer given to that question for the purposes of the present case. It is in the light of those principles and the observations submitted by the parties in that respect that the Court has examined those documents in the present case.'

[109] The standard first mentioned as 'in the light of consistent evidence' in Joined Cases T-305/94 et al., *PVC II,* 1999 E.C.R. II-931, ¶ 777 (GC), https://eur-lex.europa.eu/legal-content/PL/TXT/?uri=ecli%3AECLI%3AEU%3AT%3A1999%3A80, and later rephrased to 'viewed as a whole' in Joined Cases T-67/00 et al., JFE Eng'g Corp. v. Comm'n, 2004 E.C.R. II-2501, ¶ 180 (GC), https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:62000TJ0067 and the following case law.

[110] *See*, e.g., KALINTIRI, *supra* note 103, at 106.

provided to it by the notifying parties or by any third party taking an active part in the procedure,'[111] and secondly to 'seek to discover those facts through market investigations or requests for information from market operators'[112] if necessary. The empirical results presented below suggest that the EC generally deems such efforts to be an important part of the proceedings.

C. Aligning the Standards for the Use of Expert Knowledge in Antitrust Proceedings

Analysis of the regulatory framework and case law concerning expert evidence shows that, while the issue has not been addressed in the relevant EU regulatory acts, the requirements developed in case law resemble to a certain extent those of Rule 702. As illustrated by Table 1, the most significant difference appears to be the absence of a data quality requirement in the CJEU's catalogue. Additionally, Rule 702 lists several grounds on which a person may be considered an expert, including knowledge, skill, experience, training, and education. The *Google Android* case does not discuss these grounds, except to request that the expert's qualifications and experience be set out. Furthermore, Rule 702(d) includes a requirement that is more focused on applying reliable methods and principles to the facts of the case, while the *Google Android* judgment highlights the necessity of explaining the relevance of the answer provided by the expert to the case.

While the *Google Android* case partially aligned the standards for using expert knowledge in antitrust proceedings between the United States and the EU, Rule 702 focuses more on highlighting the quality of the research presented as evidence. For example, it emphasizes the reliability of the principles, methods, and data. The *Google Android* requirements seem to focus on explaining how the expertise will be useful for the case. However, it must be underscored that the *Google Android* case is very recent, especially compared to Rule 702. Therefore, it did not apply to the scrutinized decisions, and its potential impact on expert knowledge standards in the European Union will only be observed in the future.

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[111] Case T-151/05, Nederlandse Vakbond Varkenshouders (NVV) v. Comm'n, 2009 E.C.R. II-1219, ¶ 165 (CFI), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A62005TJ0151.
[112] Case T-151/05, Nederlandse Vakbond Varkenshouders (NVV) v. Comm'n, 2009 E.C.R. II-1219, ¶ 165 (CFI), https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A62005TJ0151.

TABLE 1: RULE 702 AND THE CJEU'S REQUIREMENTS REGARDING EXPERT EVIDENCE IN THE *GOOGLE ANDROID* CASE.[113]

	Rule 702	***Google Android* case, para 96**
Allowing for the use of expert evidence	A witness who is qualified as an expert by knowledge, skill, experience, training, or education may testify in the form of an opinion or otherwise if the proponent demonstrates to the court that it is more likely than not that:	Similarly, as regards the statements or reports submitted—at a party's request to support its claims—by a third party on the basis of the latter's status as expert, it should be noted that the probative value of such documents is assessed in several respects. The author must ensure that he or she sets out his or her qualifications and experience […]
Expertise relevant for the case	(a) the expert's scientific, technical, or other specialized knowledge will help the trier of fact to understand the evidence or to determine a fact in issue;	[…] and explains how they are relevant to his or her providing an opinion on the question under consideration.
Data quality	(b) the testimony is based on sufficient facts or data;	–
Reliable methods	(c) the testimony is the product of reliable principles and methods; and	Moreover, in terms of its content the opinion must set out the reasons why it should be taken into consideration, whether as regards the reliability of the methodology used […]
Reliable methods applied to provide answer relevant to the case	(d) the expert's opinion reflects a reliable application of the principles and methods to the facts of the case.	Moreover, in terms of its content the opinion must set out the reasons why it should be taken into consideration, [...] or the relevance of the answer given to that question for the purposes of the present case.

IV. THE USE OF EXPERTISE IN ANTITRUST ENFORCEMENT: AN EMPIRICAL LENS

While some empirical studies have examined the extent to which expert knowledge is used in US antitrust proceedings, as well as the nature of this usage, they have mostly focused on the use of economic expertise. Here, I will only refer to the most recent studies in order to present the most up-to-date empirical evidence on the topic.[114]

The methods employed in these studies vary. Some attempted to address the topic from a quantitative perspective. For example, Edoardo Peruzzi examined challenges to economic experts under *Daubert* between 1993 and 2021 using data from the Daubert Tracker

[113] Source: Own elaboration.
[114] For the older studies, *see* Sophia I. Gatowski et al., *Asking the Gatekeepers: A National Survey of Judges on Judging Expert Evidence in a Post-Daubert World.*, 25 LAW & HUM. BEHAV. 433, 434 (2001) and the literature cited therein.

database.[115] He found that, 'in absolute terms economists have received a greater number of gatekeeping challenges in antitrust cases than in other areas of law,'[116] with antitrust and trade regulation accounting for 17.6% of the 6,614 challenges he analyzed.[117] His empirical study supports three key findings: economists are more frequently challenged in antitrust cases than in other areas of law; the use of *Daubert* 'imposes an additional burden on plaintiffs'[118]; and there has been an increase in the frequency of Daubert challenges.[119]

In another recent empirical study, Federico Ciliberto, Kenneth G. Elzinga, and D. Daniel Sokol focus on tracing changing trends in the invocation of economists in case law, and on examining the identity of these economists.[120] Their research enabled them to discern patterns in the use of economic knowledge and claim that the professionalization of economic expertise provision in antitrust proceedings could be observed, characterized by the growing role of consultants and diminishing role of academics.[121] They also argue that their results contradict the claims made by Lopatka and Page. While Lopatka and Page emphasize the importance of academic literature in shaping the courts' approach to the economic aspects of cases, Ciliberto, Elzinga, and Sokol demonstrate the crucial role played by economists testifying in particular cases.[122]

Other academics have used qualitative methods to analyze the use of expertise in antitrust enforcement. Brian Rafkin and Blair Kuykendall collected district court decisions on all DOJ, FTC, and state attorney general merger challenges litigated in federal court between 2005 and 2020.[123] They observed that 'the government almost always wins when a court relies extensively on economic experts,'[124] but that 'documents and fact witness testimony tend to matter more than economic testimony [...] economic experts [...] testimony tends to play second

[115] For the database, s*ee* DAUBERT TRACKER, *Product Overview*, www.dauberttracker.com/product/overview.cfm (last visited Mar. 11, 2026).
[116] Edoardo Peruzzi, *An Empirical Study on Daubert Challenges to Economists in Antitrust Litigation* 4 (Oct. 24, 2024) (unpublished manuscript), https://ssrn.com/abstract=5006036.
[117] *See* Peruzzi, *supra* note 116, at 4.
[118] Peruzzi, *supra* note 116, at 10.
[119] Peruzzi, *supra* note 116, at 10.
[120] Federico Ciliberto, Kenneth G. Elzinga & D. Daniel Sokol, *Economic Analysis in Antitrust Litigation: Empirical Evidence from the Courts, 1890–2018*, 87 ANTITRUST L.J. 453 (2026).
[121] 'The observed shift from academic economists to professional economists being mentioned in court opinions indicates a growing professionalization of economic expertise in antitrust litigation.'—Ciliberto, Elzinga & Sokol, *supra* note 120, at 471.
[122] 'But their view is that the appellate courts imbibe economics from scholarly literature rather than economic testimony. [...] Our paper is a counterpoint to Lopatka and Page. There are too many references to economic experts by the courts to claim their influence is zero or minimal.'— Ciliberto, Elzinga & Sokol, *supra* note 120, at 483.
[123] *See* Brian Rafkin & Blair Kuykendall, *Antitrust Cancel Culture: Do Economic Experts Really Cancel Each Other Out in Merger Litigation?*, ANTITRUST, Spring 2021, 55.
[124] Rafkin & Kuykendall, *supra* note 123, at 57.

fiddle to the other evidence.'[125] This is in contrast to the quantitative analysis performed by James Langenfeld and Chris Alexander, who argue that courts often favor defendants' experts.[126] This perspective is shared by others[127] and, as I demonstrate below, is confirmed by the analysis of the *FTC v. Meta Platforms, Inc.* case.

This overview shows that while there are certain distinguishable patterns, e.g., the growing role of expert testimonies (in particular, those of economists) and economic analysis[128] in antitrust proceedings, the *Daubert* approach favoring the defendant's experts over the plaintiff's,[129] and the greater importance of lay witness testimonies when compared to expert ones.[130] Nevertheless, there is still much uncertainty surrounding the understanding of the impact of economics on antitrust rulings. Similarly, in the context of the EU legal system, empirical evidence regarding the role of expert knowledge in competition law proceedings is scarce, focusing strictly on the role of economic analyses.[131] Thus, it is necessary to provide more insight into this issue by broadening the approach to include various kinds of expertise. As I show below, while expert knowledge serves the purpose of analyzing the economics of digital markets, it may not necessarily take the form of economic reports or be provided by economists.

V. THE USE OF EXPERT KNOWLEDGE IN THE PROCEEDINGS RELATED TO THE *META/INSTAGRAM* AND *META/WHATSAPP* MERGERS

[125] Rafkin & Kuykendall, *supra* note 123, at 57.
[126] *See* James Langenfeld & Chris Alexander, *Daubert and Other Gatekeeping Challenges of Antitrust Economists* 15 (AM. ANTITRUST INST., Working Paper No. 08-06, 2010), https://ssrn.com/abstract=1337081.
[127] *See* 'Although similar problems can confront the economist hired by the defendant, typically the plaintiff's expert is faced with the more daunting task. The plaintiffs expert largely has to work within the theory presented in the complaint, and with the data that the plaintiff has been able to obtain through discovery.'—Solow & Fletcher, *supra* note 58, at 496.
[128] *See* Siying Cao, *Economic Analysis in Antitrust Law: An Automated Approach Applied to US Appellate Courts*, 2 STAN. COMPUTATIONAL ANTITRUST 155, 172 (2022), https://law.stanford.edu/wp-content/uploads/2022/10/cao.pdf for a study approaching this issue from text mining perspective, which also shows the growing presence of economic analysis in antitrust cases. Similar trend has been observed in the enforcement of competition law in the EU, see Damien J. Neven, *Competition Economics and Antitrust in Europe*, 21 ECON. POL'Y 742 (2006).
[129] *See* Solow & Fletcher, *supra* note 58, at 496.
[130] *See* Brian Rafkin & Blair Kuykendall, *Antitrust Cancel Culture: Do Economic Experts Really Cancel Each Other Out in Merger Litigation?*, ANTITRUST, Spring 2021, 57.
[131] For a few published attempts to address this question, see Neven, *supra* note 128 or Ioannis Lianos & Christos Genakos, *Econometric Evidence in EU Competition Law: An Empirical and Theoretical Analysis* (UNIV. COLL. LONDON CTR. FOR LAW, ECON. & SOC'Y, Working Paper No. 06/12, 2012), https://ssrn.com/abstract=2184563.

A. Case Selection, Methods, and Sources

The selection of case used for this study includes the text of the ruling adopted in the United States in the case of the *FTC v. Meta Platforms, Inc.*, and the decision in the Facebook/WhatsApp merger case, adopted by the EC. The selection of documents for this analysis is based on 'theoretically informed sampling:'[132] the EC's decision and the US's ruling are similar cases with regard to the markets and companies they concern as well as the behavior analyzed. Moreover, the US ruling, in particular, includes important considerations regarding the use of expert knowledge for the purposes of the proceedings, which makes the case particularly relevant to the subject of this study. This choice also considers the need to balance the limitations of possible comparisons related to differences in the analyzed legal systems with the proximity of the substantive issues addressed by the selected decisions and judgments. Hence, the comparison concerns the first decision adopted in the given enforcement system: for the EU, administrative decision by the EC, and, in the case of the United States, the court ruling. It also fulfils the condition of proper case study selection in that 'the case should stand for a population:'[133] the selected documents are illustrative of the enforcement focused on digital markets and allow for scrutiny of the particular issue on which the analysis is centered, namely the use of expert knowledge.[134] Covering also the adoption of the DMA, to which I refer in the following Part VI of the text, allows me to complete the analysis with more recent developments in the approach to the use of expertise in antitrust and the enforcement of regulations concerning digital markets.

The comparison presented below is based on mixed-methods analysis. Firstly, references to expert knowledge in these documents are identified and analyzed quantitatively. Secondly, an in-depth qualitative analysis of the role of references to expertise in these cases is presented. The methodological approach with respect to this part was inspired by Wayne R. Dunham's study, in which he conducted an in-depth analysis of the empirical evidence used by the DoJ in the *U.S. v. Microsoft* case.[135] The qualitative analysis focuses on the *FTC v. Meta*

[132] Katerina Linos, *How to Select and Develop International Law Case Studies: Lessons from Comparative Law and Comparative Politics*, 109 AM. J. INT'L LAW 475, 479 (2015).
[133] Jason Seawright & John Gerring, *Case Selection Techniques in Case Study Research: A Menu of Qualitative and Quantitative Options*, 61 POL. RES. Q. 294, 306 (2008).
[134] For a recent study which uses sources of evidence as data illustrating how policy is shaped, *see* Richard V. Burkhauser & Ji Ma, *Sources of Evidence for Evidence-based Policymaking: Journals, Articles and Scholarly Structures in the Economic Report of the President 2010-2025* (NAT'L BUREAU OF ECON. RSCH., Working Paper No. 34597, 2025), https://doi.org/10.3386/w34597.
[135] Wayne R. Dunham, *The Determination of Antitrust Liability in United States v. Microsoft: The Empirical Evidence the Department of Justice Used to Prove its Case*, 2 J. COMPETITION L. & ECON. 549 (2006).

Platforms, Inc. ruling and the Facebook/WhatsApp merger decision, however, this part of the study also uses supplementary sources, such as other documents, decisions and case law. Thirdly, the selected case study is considered in the context of the formal legal analysis of the regulatory framework governing the use of expert knowledge in antitrust law proceedings in both the United States and the European Union (see Parts II and VI). Furthermore, an analysis of the relevant aspects of the case, namely references to expert evidence and *Daubert* requirements, completes the qualitative analysis.

For the purpose of quantitative analysis, the same method of data collection and analysis was used for all analyzed documents,[136] but was adjusted to account for the specifics of U.S. rulings. Thus, data collection from the *FTC v. Meta Platforms, Inc*. ruling included gathering the following types of information about each reference made by the judge: (1) page number, (2) the quote to which the source is referencing, (3) the source, (4) the source's abbreviated name, (5) the source's type, (6) the function the source serves in the argument, (7) any additional information, (8) a link to or the location of the source, if available, and (9) the reference to the source. Table 2 presents an example of a filled-in row.[137]

TABLE 2: AN EXAMPLE OF A ROW FROM A TABLE COLLECTING REFERENCES FROM THE *FTC V. META PLATFORMS, INC.* RULING.[138]

Page	**Quote**	**Source**	**Abbre-viated**	**Type**	**Function**	**Additional data**	**Link**	**Reference**
7	More than 70% of time on TikTok is spent on this feed. See Apr. 30 AM Tr. at 53:21–54:10.	Apr. 30 AM Tr. at 53:21–54:10.	Apr. 30 AM Tr.	trans-cript	data		file sealed (https://www.courtlistener.com/docket/18735353/641/federal-trade-commission-v-meta-platforms-inc/)	FEDERAL TRADE COMMISSION v. META PLATFORMS, INC., 1:20-cv-03590, (D.D.C. Aug 15, 2025) ECF No. 641

[136] In the case of the EU, the results concerning the Facebook/WhatsApp merger are considered in the context of the broader results achieved by analyzing 14 merger cases and three antitrust cases. For a working paper discussing in more detail the above-mentioned 14 EU merger cases, *see* Joanna Mazur, *The Use of Expert Knowledge in Commission's Merger Decisions Concerning Digital Markets: Empirical Insight and Elaboration of a Regulatory Model* (Sept. 19, 2024) (working paper), https://jmn-eulen.nl/wp-content/uploads/sites/575/2024/09/Mazur-EULEN-Conference-2024.pdf. For a work on EU antitrust cases, *see* Mazur, *supra* note 25.
[137] Dataset of collected references is available online, *see* [DATASET].
[138] Source: Own elaboration.

The data collected from the Facebook/WhatsApp merger decision included the following types of information: (1) the title of the source, (2) the specific type of the source, (3) the general type of the source, (4) the location of the quotation in the decision (footnote and page number), (5) the quotation to which it refers, (6) the function that the source serves in the argument. For an example, see Table 3.[139]

TABLE 3: AN EXAMPLE OF A ROW FROM THE TABLE COLLECTING DATA ON REFERENCES FROM THE FACEBOOK/WHATSAPP DECISION.[140]

Title	**Type: specific**	**Type: general**	**Where quoted?**	**Quotation**	**Function**
Question-naire to competi-tors	question-naire to compe-titors	industry	footnote 6, p. 4	The market investigation indicated that, while different operating systems may enable slightly different experiences, consumer communications apps available for different operating systems are normally regarded as a single product by users and providers.6 6 Commission pre-notification questionnaire to competitors, question 14; Commission questionnaire Q1 - Questionnaire to competitors, question 13.	characte-ristics of the markets

There are multiple challenges related to the collection of the data used for this study. First, many of the referenced documents are unavailable. As illustrated by the example in Table 2, this is often due to the files being sealed. This mostly concerns the transcripts, which constitute more than half of the identified references in the US ruling, therefore, lack of access to these files is especially significant. Second, the lack of access to these files makes it impossible to identify to whose testimonies the references are made. Although general lists of witnesses and schedules of their testimonies are available online,[141] without access to the transcripts, it is impossible to claim with 100% certainty that a given source refers to a particular individual's testimony. In the case of the EU, the exhibits used in the proceedings are not made available, and information about who provided the answers to the RFIs is usually not included in the decision. Thus, although for different reasons, decisions often lack important information regarding the use of expertise in the process of their adoption. Therefore,

[139] Dataset of collected references is available online, see [DATASET]. For the purpose of this study, I excluded some variables (e.g., whether the reference resulted from the EC's or the Party's initiative). This exclusion is due to the alignment of the dataset with the EC's decision and the *FTC v. Meta Platforms, Inc.* ruling.
[140] Source: Own elaboration.
[141] *See* Fiona Jackson, *Meta Accuses FTC Expert of Bias on Final Trial Day: 'You Helped Get It Started'*, TECHREPUBLIC (May 28, 2025), https://www.techrepublic.com/article/news-meta-ftc-monopoly-trial/.

the quantitative results are treated with caution in this work, and it is important to consider these limitations when interpreting the findings.

B. The Epistemic Power of the Platform in the *FTC v. Meta Platforms, Inc.* Ruling

The *FTC v. Meta Platform, Inc.* ruling resulted from an FTC lawsuit, in which the FTC argued that Meta had engaged in monopolization by acquiring Instagram and WhatsApp.[142] From the outset, the case was an uphill battle for the FTC, as the judge expressed numerous doubts about the extent of Meta's market power and the evidence presented by the FTC in its initial complaint in 2020.[143] The complaint only referred to market shares once and did not provide any information on where the invoked data came from.[144] Nevertheless, the judge allowed the FTC to submit an amended complaint,[145] which FTC did in 2021.

The ruling, which was adopted following the amended complaint, focuses on the designation of the relevant market, which is a necessary step for the analysis of monopolization practices.[146] First, the judge analyzed direct evidence to determine whether the FTC proved that Meta has a dominant position by demonstrating that it enjoys substantial profits, improves the quality of its apps, and uses price discrimination.[147] The judge concluded that the FTC had not proven this, and thus proceeded to analyze indirect market-share evidence.[148] In this regard, too, the court ruled that the FTC had failed to prove its case.[149] Based on its observation that Meta operates in a market 'that comprises Facebook, Instagram, Snapchat, MeWe, TikTok, and YouTube,'[150] the decision states that Meta does not have a monopoly power, and, hence, there is no need for the analysis of its potential abuse.[151] The timing was crucial for the judge's reasoning: the ruling emphasizes the need to prove that the company held monopoly power at

142 *See Meta Platforms*, ECF No. 705, at 1.
143 'In this unusual context, the FTC's inability to offer any indication of the metric(s) or method(s) it used to calculate Facebook's market share renders its vague "60%-plus" assertion too speculative and conclusory to go forward.'—*FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 73, 2 (D.D.C. Jun 28, 2021), https://www.courtlistener.com/docket/18735353/73/federal-trade-commission-v-meta-platforms-inc/.
144 *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 51, 19 (D.D.C. Jan 13, 2021), https://www.courtlistener.com/docket/18735353/51/federal-trade-commission-v-meta-platforms-inc/.
145 *See Meta Platforms*, ECF No. 73, at 2.
146 *See Meta Platforms*, ECF No. 705, at 22.
147 *See Meta Platforms*, ECF No. 705, at 24–36.
148 *See Meta Platforms*, ECF No. 705, at 36–82.
149 *See Meta Platforms*, ECF No. 705, at 56: 'Against that unmistakable pattern, the FTC offers no empirical evidence of substitution whatsoever.'
150 *See Meta Platforms*, ECF No. 705, at 82.
151 *See Meta Platforms*, ECF No. 705, at 89.

the time the judgment was issued, which the FTC was unable to do, according to the judge.[152] The following analysis explores the sources used by the court to reach this conclusion.

Despite the above-mentioned limitations concerning data collection, there are certain important observations based on the quantitative element of this study regarding the use of expertise in the ruling. Almost half of the 886 references identified—401—are to transcripts (see Table 4). Considering the lack of access to these documents, it is difficult to unequivocally assess the extent to which expert testimony impacts the case using only quantitative data. The second most numerous group comprises references to the Defendant's Exhibits (DX)—160. Next are 120 references to other cases, and, on the fourth position, 75 references to the Plaintiff's Exhibits (PX)—less than half the number of references to DX. Of the types of references mentioned more than ten times in the ruling, there are 34 references to various FTC documents, 22 references to depositions, 13 references to academic texts, and 12 references to Joint Stipulations of Fact.

TABLE 4: NUMBER OF REFERENCES TO PARTICULAR TYPE OF SOURCE IN THE *FTC V. META PLATFORMS, INC.* RULING.[153]

Type	Number of references
academic and textbook	13
amended complaints	1
case	7
complaint	7
court order	2
Defendant's Demonstrative Exhibit—DDX	8
deposition	22
Defendant Exhibit—DX	160
FTC's documents	34
legal act	8
Meta's documents	7
Joint Stipulations of Fact	12
notion for summary judgment FTC	1

[152] 'As both elements must be met, the FTC must prove that Meta has monopoly power now.'—*Meta Platforms*, ECF No. 705, at 24 and 'Whether or not Meta enjoyed monopoly power in the past, though, the agency must show that it continues to hold such power now. The Court's verdict today determines that the FTC has not done so. A judgment so stating shall issue this day.'—*Meta Platforms*, ECF No. 705, at 89.
[153] Source: Own elaboration.

notion for summary judgment Meta	1
other case	120
Plaintiff's Demonstrative Exhibit—PDX	4
Plaintiff Exhibit—PX	75
transcript	401
website	3
TOTAL	***886***

This catalog shows the testimonies of witnesses who played a very important role in the proceedings. While the most frequently referenced type of source is not usually publicly available, other referenced evidence often is. Many PXs and DXs, for example, are available online, albeit redacted, providing an opportunity to scrutinize their content. This illustrates the ambivalence regarding any attempts to assess the level of transparency regarding the impact of expert knowledge on legal proceedings. In *FTC v. Meta Platforms, Inc.*, however, the court clearly relied on the Defendant's perspective, as evidenced by quantitative (e.g., number of invoked DXs) and qualitative (e.g., substantive content of the judgment—see below) analyses. Quantitative evidence supporting this view comes from cross-referencing the most frequently invoked transcripts[154] with information about who testified on a given day (Table 5). Except for Scott Hemphill, whose testimony is heavily criticized in the judgment (see the following section), the witnesses whose testimonies are referenced are representatives or current and former employees of Meta, Instagram, Facebook, and TikTok.

TABLE 5: THE MOST FREQUENTLY INVOKED TRANSCRIPTS AND THE WITNESSES WHO TESTIFIED ON THESE DATES.[155]

Abbreviated	Occurrences	Witnesses[156]
May 12 AM Tr.	31	Meta's CMO, Alex Schultz; next Scott Hemphill
May 8 PM Tr.	29	Instagram CEO, Adam Mosseri; Meta CMO, Alex Schultz
May 14 PM Tr.	28	Scott Hemphill; next Head of Facebook, Tom Alison.
Apr. 30 AM Tr.	25	Adam Presser, leads operations and trust and safety at TikTok
Apr. 16 AM Tr.	19	Mark Zuckerberg; Ex-Meta COO Sheryl Sandberg (near the end of the session)

[154] The list of most-invoked sources is nearly identical. The only exception is the FTC Post-Trial Memorandum, which was cited 21 times in the ruling.
[155] Source: Own elaboration.
[156] Based on Jackson, *supra* note 141.

May 1 PM Tr.	19	Curtiss Cobb, a research executive, Meta; John Hegeman, Meta's Chief Revenue Officer; Former TikTok director of UX research, Eric Morrison
May 12 PM Tr.	19	Meta's CMO, Alex Schultz; next Scott Hemphill
May 13 AM Tr.	19	Scott Hemphill
May 8 AM Tr.	19	Instagram CEO Adam Mosseri; Meta CMO Alex Schultz

Lastly, the coding exercise reveals that the most common functions of the references are interpreting consumer behavior, providing facts, and conducting economic analyses (Table 6—one reference has often been coded as serving multiple functions; hence, the sum is higher than the number of identified sources). Examples of quotes coded as referring to consumer behavior include statements such as 'Texting a medium-sized group of close friends, it turns out, was often more appealing than broadcasting updates to 1,000 acquaintances,'[157] 'People have increasingly become less interested in blasting out public posts that hundreds of others can see,'[158] and 'Meta's internal documents also universally reflect an awareness that users dislike ads.'[159] Examples of quotes coded as referring to economic analysis include: 'One Instagram survey found that the top two user complaints were both about seeing too many ads,'[160] 'While users indeed prefer fewer ads, however, the preference is slight. Again, showing users no ads whatsoever gets them to spend only 7% more time on Facebook,'[161] and 'For one, Meta generally does not increase ad load until its ads have improved — that way, the company can sell more ads without pushing users away from its apps.'[162]

TABLE 6: FUNCTIONS OF INVOKED REFERENCES.[163]

Function	**Occurrences**
accusation	3
case	62
facts	267
interpretation	225
consumer behavior	289
data	204

[157] *Meta Platforms*, ECF No. 705, at 11.
[158] *Meta Platforms*, ECF No. 705, at 13.
[159] *Meta Platforms*, ECF No. 705, at 17.
[160] *Meta Platforms*, ECF No. 705, at 17.
[161] *Meta Platforms*, ECF No. 705, at 17.
[162] *Meta Platforms*, ECF No. 705, at 21.
[163] Source: Own elaboration.

economic analysis	237
relevant market	204
market power	31
market characteristics	211
legal analysis	151
vocabulary	3
NA	1

Quotations were often coded as referring to both types of information. Thus, the selection of occurrences belonging to either or both codes includes 339 references. Zooming in on the sources coded as referring to consumer behavior analysis and economic analysis reveals that transcripts are the most frequently invoked source, followed by DX with half as many references. Other types of sources rarely appear, confirming that, from a quantitative perspective, the Defendants' exhibits are vital to the proceedings.

TABLE 7: SOURCES INVOKED WITH REGARD TO REFERENCES THAT WERE CODED AS REFERRING TO CONSUMER BEHAVIOR AND ECONOMIC ANALYSIS.[164]

Types of source	Occurrences
academic	7
DDX	6
DX	85
deposition	3
FTC	20
legal act	2
Meta Post-trial Mem.	2
other case	21
PDX	3
PX	22
transcript	168

[164] Source: Own elaboration.

While the quantitative analysis shows the importance of witness testimonies and DXs for the proceedings—the two most often cited sources in the analyzed case—it is necessary to scrutinize the court's reasoning in more detail to trace the proponents of the perspective presented in the judgment. The qualitative analysis of the ruling demonstrates the significance of designating the relevant market for the court's decision: the judge dismissed the FTC's claims because TikTok and YouTube are considered competitors of Facebook and Instagram.[165] Below, I examine the grounds on which this view was adopted.

Scrutinizing the content of the ruling allows for some general observations about how it presents the case. Firstly, Meta's narrative is dominant. This dominance is evident in the way business decisions are presented as necessary and in the way the ruling argues that user behavior depends on the users and not on how the platform operates. This mechanism is evident in the section presenting the background of the case.[166] The court observes two shifts that took place in the last decade regarding social media usage. First, which is a shift in the type of content shown to users, particularly the growing importance of Reels and, more generally, unconnected content—that is, content not posted by users' friends.[167] This change is described quite impersonally: 'Yet friends' content has withdrawn from the main feature to a smaller ingredient in a blend.'[168] However, one could argue that users' consumption of content is mostly driven by how content is displayed. Therefore, the description of these shifts should underscore the active role platforms play in this process.[169] The second shift is the users posting less content.[170] The court lists several factors that have led to this shift.[171] Many of these factors are related to technology, such as the widespread use of smartphones. One factor is related to competition: the growth of TikTok. What is striking about this part of the ruling is the deterministic perspective the judge adopted regarding business choices made by Meta. For example, the ruling states that '[b]ecause Meta has fewer posts from friends to fill each user's feed, it must turn to unconnected content to fill the gap,'[172] as if there were no other option. Similarly, the ruling presents technological changes as the reason for the shift in how Facebook

[165] 'The Court decides only what product market Meta competes in and whether Defendant holds monopoly power in that market. Both are primarily factual questions.'—*Meta Platforms*, ECF No. 705, at 21.
[166] *See Meta Platforms*, ECF No. 705, at 4–20.
[167] *See Meta Platforms*, ECF No. 705, at 8–9.
[168] *Meta Platforms*, ECF No. 705, at 10.
[169] For a brief explanation of the mechanisms underlying how social media work, *see* Sang Ah Kim, *Social Media Algorithms: Why You See What You See*, 2 GEO. L. TECH. REV. 147 (2017-2018).
[170] *See Meta Platforms*, ECF No. 705, at 10.
[171] *See Meta Platforms*, ECF No. 705, at 11–14.
[172] *Meta Platforms*, ECF No. 705, at 14.

and Instagram present content to users. However, one could argue that these technological changes could influence—or not—how social media works in other ways.

Secondly, the judgment shows how dependent the court is on the data provided by Meta. This primarily involves information on user behavior, such as survey results. For instance, when discussing the impact of ads on user behavior, the ruling cites Meta's surveys.[173] A very telling example is the discussion of user sentiment toward Meta's services. The explanation of Meta's regular surveys begins with the following introduction: 'Nobody knows more about these surveys than Curtis Cobb, Meta's Vice President of Research, head of the company's Demography and Survey Science group, and administrator of these surveys. [...] He explained that sentiment scores primarily measure "brand reputation," not product quality.'[174] This dependence on Meta's sources is coupled with the interpretation of these sources provided by Meta's employees. While alternative explanations could be developed—e.g., the lock-in effect (see below) or the addictiveness of apps[175]—the judgment follows the logic presented by the Defendant. This is also evident in the section of the ruling that discusses indirect evidence:

> 'Turning to consumer behavior, Meta maintains that all the empirical evidence shows that consumers treat other apps — especially TikTok and YouTube — as substitutes for Facebook and Instagram. [...] The FTC might have drawn up some theories that sound plausible in the abstract and might even have been true in years gone by, but Defendant says that they do not match today's reality.'[176]

This statement illustrates the platform's strong position in shaping the understanding of digital markets, a position further confirmed by the court's reliance on evidence provided by Meta's expert, John List.[177]

Thirdly, from a knowledge standpoint regarding how the digital market works, the ruling seems to downplay or ignore the importance of many mechanisms identified by researchers as vital to these types of markets. For instance, the court acknowledges that: 'The company knows basic information about users: their demographics, how long they have been

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[173] E.g., 'Facebook has run an experiment where it does not show ads to a small group of users; those users spend 7% more time on the platform.' and 'One Instagram survey found that the top two user complaints were both about seeing too many ads.'—*Meta Platforms*, ECF No. 705, at 17 and 'Meta estimated that reducing teens' ad load by 80% would get them to use Facebook only 3% more often, while cutting young adults' ad load in half would juice their Facebook sessions by only 1%.'—*Meta Platforms*, ECF No. 705, at 18.
[174] *Meta Platforms*, ECF No. 705, at 30.
[175] At the time of preparing this manuscript, scrutinized in another case against Meta, *see* Kali Hays & Natalie Sherman, *Zuckerberg Defends Meta in Landmark Social Media Addiction Trial*, BBC (Feb. 18, 2026), https://www.bbc.com/news/articles/c5y42znjnjvo.
[176] *Meta Platforms*, ECF No. 705, at 37.
[177] *See Meta Platforms*, ECF No. 705, at 43–47.

on Facebook or Instagram, how many friends or followers they have, how much they use the app.'[178] Considering the extent to which Meta's business model depends on processing personal data, this is very delicate phrasing. Another example is the description of Meta's expansion in terms of the variety of services offered: 'The record, however, shows the opposite: Meta's apps have continuously improved. The company has added scores of new features to Facebook and Instagram, from Stories to Reels to Marketplace,'[179] which could be explained by the important role ecosystems play in the digital economy. However, the judgment hardly mentions issues such as the lock-in effect, network effects,[180] or multihoming. This demonstrates how the judge exercises his economic authority by selecting the economic concepts he deems relevant to the case.

The discussion of the lock-in effect could be particularly relevant to the arguments made concerning ad load. While the court acknowledges the FTC's point about increasing ad load on Facebook and Instagram, it argues that: 'When Meta has stuffed its apps with more ads and upgraded them with new features, it is not clear that the company has reduced quality overall.'[181] The court also observes that the users' reactions to ads depend on their quality. Sources invoked to support this claim include transcripts from days when Mark Zuckerberg (Meta's CEO), Sheryl Sandberg (ex-Meta COO), Jim Goetz (an investor in WhatsApp from Sequoia Capital), Brian Acton (WhatsApp co-founder), Nicholas Shortway (Meta's production engineering director), Adam Mosseri (Instagram CEO), and Alex Schultz (Meta CMO) were testifying.[182]

Fourthly, the judgment discusses multiple issues for which alternative interpretations would be plausible but were not included in the ruling. For instance, the ruling notes that 'Facebook, Instagram, TikTok, and YouTube have thus evolved to have nearly identical main features.'[183] This convergence is an important point in the reasoning behind designating the relevant market, as the court argues that these platforms are substitutes for one another. However, one could argue that users posting the same content on multiple platforms proves their perception of them as complementary rather than as substitutes. The perspective of the users posting on these platforms is, however, hardly present in the judgment.

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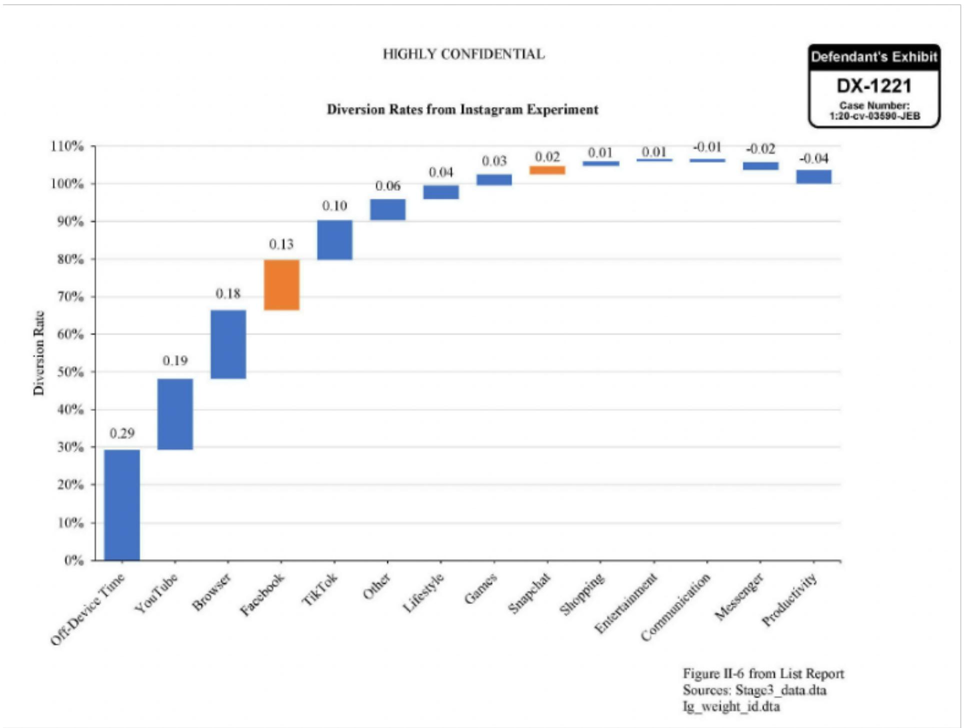
[178] *Meta Platforms*, ECF No. 705, at 19.
[179] *Meta Platforms*, ECF No. 705, at 27.
[180] *See Meta Platforms*, ECF No. 705, at 75.
[181] *Meta Platforms*, ECF No. 705, at 28.
[182] Sources identified in the first and the second paragraph at *Meta Platforms*, ECF No. 705, at 28.
[183] *Meta Platforms*, ECF No. 705, at 14.

Similarly, the fact that people post less does not mean that users do not want to see more content from their friends.[184] While the court acknowledges the existence of alternative interpretations, this part of the judgment is heavily redacted. Therefore, it is not possible to fully understand why the FTC's claim was dismissed. Another example is the question of the age of users of apps that could be considered substitutes. The court, discussing the drop in the use of Facebook and Instagram, notes that 'That decline was especially alarming because so many of Meta's users had not even downloaded TikTok yet.'[185] However, it is unclear whether these users would actually download TikTok, or if this was just a hypothetical concern. While the new app might be attractive to younger users, its popularity among other age groups might be questioned.[186]

FIGURE 1: SCREENSHOT OF DX-1221 FILE.[187]



Another vital piece of evidence for the ruling is List's experiment measuring how users behave when they do not have access to Facebook or Instagram. The court's analysis of this testimony is striking in that it ignores data showing that people spend more time offline when

[184] *See* 'First, the evidence contradicts it. While it is true that users see less content from their friends these days, that is largely due to the friends themselves: people simply post less.'—*Meta Platforms*, ECF No. 705, at 32.
[185] *Meta Platforms*, ECF No. 705, at 42.
[186] *See* Fabio Duarte, *TikTok User Age, Gender, & Demographics* (Feb. 16, 2026), https://explodingtopics.com/blog/tiktok-demographics.
[187] Source: Exhibit DX-1221.

they do not have access to these apps.[188] This approach is interesting when compared to the judge's perspective on measuring the company's market power.

> 'In the Court's view, the best single measure of market share is total time spent. For one, that statistic makes the most analytic sense. Because Facebook, Instagram, Snapchat, TikTok, and YouTube are all free, people often use all five apps, which pulls each one's market share toward an uninformative tie. See May 12 PM Tr. at 175:18–176:4. Measuring the market by number of users, then, would ensnare the Court in a mess of double counting. Id. Time spent avoids this problem. It also captures the intensity of use: if someone spends two minutes on Instagram and two hours on TikTok, she should not count as an equal user of each.'[189]

List's data clearly shows that off-device time was the most frequently observed option. This suggests that, for many users, none of the applications are substitutes for the one they are using. If time spent on apps is used to measure market share, then it is unclear why not using a phone should not be considered a substitute for using Instagram. Following List's narrative demonstrates Meta's dominance in interpreting the data and experiments referenced in the ruling.[190]

Interestingly, such an interpretation is confirmed by a lawyer from the firm representing Meta in the proceedings. In an interview about the case, Aaron M. Panner argued that the 'quantitative evidence of substitution'[191] played a crucial role in the case. This evidence included natural experiments (e.g., data on TikTok's outage), empirical analyses (e.g., List's), documents and testimony supporting Meta's claims concerning their investment decisions, and 'the human element of the trial', defined on the firm's website summarizing the interview, as:

> 'the importance of executive testimony. Working with Meta's top executives allowed the legal team to translate a "very complicated" business into an educational experience for the court. And cross-examination of competitors revealed the "intense competition" Meta faces—facts that were ultimately reflected in the competitors' own internal documents.'[192]

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[188] *See* DX-1221, DX-1230, DX-1246, and DX-1248, included in the [DATASET].
[189] *Meta Platforms*, ECF No. 705, at 82.
[190] Especially, that the issue has been raised in the courtroom, see Brendan Benedict, *Lies, Damned Lies, and Statistics: Meta's Case-in-Chief Draws Sharp Words*, BIG TECH ON TRIAL (Jun 01, 2025), https://www.bigtechontrial.com/p/lies-damned-lies-and-statistics-metas.
[191] Aaron M. Panner, *The Power of Quantitative Evidence: Kellogg Hansen Interview with Global Competition Review re: FTC v. Meta*, KELLOGG HANSEN (Dec. 4, 2025), https://kellogghansen.com/the-power-of-quantitative-evidence-kellogg-hansen-interview-with-global-competition-review-re-ftc-v-meta/.
[192] Panner, *supra* note 191.

The phrase ‘Working with Meta’s top executives allowed the legal team to translate a “very complicated” business into an educational experience for the court’ seems to adequately describe the results of the quantitative and qualitative analyses of the case: the judge followed the interpretation suggested as part of this ‘educational experience.’ Furthermore, the significance of List's testimony in this case suggests that the court considers academics employed by consulting firms[193] to be more reliable teachers than those who support the FTC’s position.

What is interesting, although the judgment does not directly reference *Daubert*, the unsealed documents demonstrate the importance of considerations regarding expert witnesses in the proceedings. First, the possibility of limiting the number of motions *in limine* that either party can file, including *Daubert* motions, was debated. An email exchange from 2024 between the FTC and the law firm representing Meta, Kellogg, Hansen, Todd, Figel & Frederick, PLLC, refers to the FTC’s proposal ‘to include in the next JSR “a proposed cap on the number of motions *in limine* that either party can file (inclusive of *Daubert* motions).”’[194] Meta’s lawyers’ opposition to this proposal is understandable given their concerns about the expert reports provided by the FTC: ‘The FTC’s fifteen expert reports—spanning more than 2,900 pages—are hearsay (and contain hearsay-within-hearsay) that satisfy no exception to the hearsay rule’[195] and ‘introducing expert reports into evidence is an end-run around the Court-imposed cap of 900 exhibits per side.’[196] However, the decision of the court in this regard[197] does not seem to have impact on the considerations included in the ruling.

Secondly, the most important consideration regarding *Daubert* was whether the court should consider expert witnesses and their reports or dismiss them. The FTC filed a motion to exclude the testimony of Meta’s witness, Nieh, arguing that ‘the Court should exclude Nieh’s cost-savings opinions under Rule 702 because they are not based on sufficient facts or data, they are not the product of reliable principles or methods, and Nieh is not qualified to offer them.’[198] The court shared the FTC’s concerns to a certain extent; as a result, Nieh’s testimony

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[193] *See* Compass Lexecon, *Cases Meta Prevails in Landmark Antitrust Suit* (Nov. 20, 2025), https://www.compasslexecon.com/cases/meta-prevails-in-landmark-antitrust-suit.
[194] *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 389-10, at 18 (D.D.C. Dec. 17, 2024), https://www.courtlistener.com/docket/18735353/389/10/federal-trade-commission-v-meta-platforms-inc/.
[195] *FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 585, at 1 (D.D.C. May 5, 2025), https://www.courtlistener.com/docket/18735353/585/federal-trade-commission-v-meta-platforms-inc/.
[196] *Meta Platforms*, ECF No. 585, at 3.
[197] For the relevant order, *see FTC v. Meta Platforms, Inc.*, 1:20-cv-03590, ECF No. 398 (D.D.C. Feb 10, 2025).
[198] *FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 408, at 1 (D.D.C. Feb. 25, 2025), https://www.courtlistener.com/docket/18735353/408/federal-trade-commission-v-meta-platforms-inc/. Meta’s reply: *FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 415 (D.D.C. Mar. 7, 2025), https://www.courtlistener.com/docket/18735353/415/federal-trade-commission-v-meta-platforms-inc/.

was partially excluded from the body of evidence.[199] Meta, on the other hand, argued for the exclusion of Rim's and Hemphill's evidence,[200] as well as Hemphill's testimony.[201] The FTC opposed both motions to exclude Rim's and Hemphill's evidence,[202] and the motion to strike Hemphill's testimony.[203]

While Jihoon Rim is not referenced in the ruling—his name is not mentioned and the transcript from the day he testified is not invoked—the analysis of Hemphill's position constitutes an important element of the case. First, Meta moved to exclude his analysis on the basis of Rule 702,[204] but the court denied the motion after analyzing the methods employed by Hemphill.[205] In the ruling, however, the court heavily criticized Hemphill for his lack of objectivity,[206] primarily due to claims he made before the FTC investigation began. The issue was raised by the Defendant, who argued that 'Hemphill's biased advocacy confirms the need for application of the settled rule against expert witnesses with preconceived views.'[207] Nevertheless, this lack of objectivity did not stop the court from invoking his analysis to present—redacted—data on market shares.[208] Despite the allegations, the court did not invoke *Daubert* to exclude his testimony, even though it discussed Hemphill's lack of objectivity at length.

In summary, the qualitative analysis confirms the quantitative results. The court often adopts the Defendant's perspective and explicitly acknowledges that Meta's experts are more qualified to provide insight into the analyzed market than the FTC's. The ruling demonstrates dependence on Meta's experts, and, unlike the objections raised regarding Hemphill's lack of objectivity, being a Meta employee seems to enhance the perceived reliability of the presented statistics and experiments.

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[199] 'The Court will therefore deny the FTC's request to bar Nieh from testifying that Instagram and WhatsApp likely have a lower cost performance on Meta's infrastructure than on alternatives, but it will grant the FTC's Motion as it relates to Nieh's opinions that Meta definitively has a lower cost performance than competing infrastructures.'—*FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 517, at 9 (D.D.C. Apr. 7, 2025), https://www.courtlistener.com/docket/18735353/517/federal-trade-commission-v-meta-platforms-inc/.

[200] *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 404 (D.D.C. Feb. 21, 2025), https://www.courtlistener.com/docket/18735353/404/federal-trade-commission-v-meta-platforms-inc/.

[201] *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 606 (D.D.C. May 30, 2025), https://www.courtlistener.com/docket/18735353/606/federal-trade-commission-v-meta-platforms-inc/.

[202] *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 419 (D.D.C. Mar. 12, 2025), https://www.courtlistener.com/docket/18735353/419/federal-trade-commission-v-meta-platforms-inc/.

[203] *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 615 (D.D.C. June 6, 2025), https://www.courtlistener.com/docket/18735353/615/federal-trade-commission-v-meta-platforms-inc/.

[204] *See Meta Platforms*, ECF No. 404, at 43–48.

[205] *Meta Platforms,* ECF No. 517, at 6–7.

[206] *See Meta Platforms*, ECF No. 705, at 56–58.

[207] *See Meta Platforms*, ECF No. 606, at 5.

[208] *See Meta Platforms*, ECF No. 705, at 85–87.

C. THE APPARENT EPISTEMIC POWER OF THE INDUSTRY IN THE EC'S FACEBOOK/WHATSAPP DECISION

The decision regarding Facebook/WhatsApp was adopted over a decade earlier than the ruling discussed above.[209] The scrutinized acquisition is one of the reasons the FTC initiated its proceedings in 2020, even though it is not discussed in the ruling.[210] Thus, if not for the leniency of the enforcers on both sides of the Atlantic at the time, the market conditions that the FTC would scrutinize in 2020 might have been different. In any case, unlike the FTC, the EC adopted a decision concerning the Facebook/WhatsApp merger at the time and concluded that it did not pose a threat to competition. However, the approach toward digital companies has evolved in the European Union since that time and, for the completeness of the study, these developments shall be included in the analysis. Therefore, in this section, I present the results of the analysis concerning the use of expertise in the Facebook/WhatsApp decision. Then, in Part VI, I provide an overview of the shift that has taken place in recent years in the EU, namely the adoption of the DMA.

The collected data show a significant difference in the primary sources of information between the *FTC v. Meta Platforms, Inc.* case and the Facebook/WhatsApp decision. The most frequently referenced sources are the questionnaires sent by the EC, which are divided into two categories in Table 8: one for advertisers and one for competitors. Next are references to the EC's decisions (22). Other types of sources are much less commonly cited.

TABLE 8: NUMBER OF REFERENCES TO PARTICULAR TYPE OF SOURCE IN FACEBOOK/WHATSAPP DECISION.[211]

Type	**Number of references**
Third parties	
article	6
blog	1
case law	2
customer survey	2
data	4
pre-notification questionnaire to competitors	3
questionnaire to advertisers	9

[209] Comm's Decision Case No. M.7217, Facebook/WhatsApp (Oct. 3, 2014).
[210] *See Meta Platforms*, ECF No. 705, at 20.
[211] Source: Own elaboration.

questionnaire to competitors	30
report	1
respondent	2
website	3
Parties	
Parties—data	5
Parties—document	1
Parties—information	5
EC	
decision	22
soft law	1
Total	**97**

The importance of the sources provided by competitors and other market participants can be confirmed by coding the functions of the identified sources. While discussing market characteristics (see Table 9), they focus on the enterprises' perspective (see below for more explanation). Regarding the designation of the relevant market, the EC relies more on the expertise provided by other market players and the expertise developed by the EC itself in previous decisions. However, due to the anonymization of the responses to RFIs, it is impossible to definitively identify the firms that provided the EC with replies.

TABLE 9: FUNCTIONS OF THE INVOKED REFERENCES.[212]

Function	Occurrences
Third parties	
characteristics of the markets	27
competition assessment	20
consumer behavior	1
data	13
future projections	4
news	5
market characteristics	2
market share	1
relevant markets	19
Parties	
characteristics of the markets	8
data	5
facts	2
market shares	1

[212] Source: Own elaboration.

EC	
legal analysis	1
market characteristics	4
facts	1
relevant market	18

It is important to note that the expertise used in the EC's proceedings is not unique to the Facebook/WhatsApp decision. A study of three antitrust decisions and 14 merger cases concerning digital markets confirms that industry, understood as other market participants, is the main source of information for the EC.[213] Commercial knowledge providers—the companies that collect and analyze data on how digital markets function—are the second and third most commonly referred-to type of source in merger and antitrust decisions, respectively. This is a significant difference from the data collected based on the *FTC v. Meta Platforms, Inc.* ruling, in which the understanding of the relevant market is mostly developed based on knowledge provided by experts involved in the FTC's proceedings or by the party.

With regard to the qualitative analyses of the EC's decision, it must be underscored that the analysis of the relevant market constitutes a significant part of the decision. The EC discusses various possible approaches and presents the Party's views, typically adopting the 'narrowest relevant product market.'[214] This position is justified by the observation that, if the transaction does not raise serious doubts regarding its compatibility with the internal market when the narrowest relevant product market is designated, then broader designation of the market would also not raise such doubts.

What is different in the decision are references to the perspective that other market players present. This is evident in the quantitative data and the qualitative analysis. For example, it refers to the views of telecom operators 'who took part in the market investigation.'[215] While it is not possible to demonstrate a causal relationship between competitors' involvement in collecting evidence for the proceedings and their results, it is notable that the Facebook/WhatsApp decision considers the double-sidedness the market by including online advertising services among the analyzed markets. This focus diverges from a

[213] *See* Mazur, supra note 136 and Mazur, supra note 25.
[214] Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 34 (Oct. 3, 2014).
[215] 'Finally, telecoms operators who took part in the market investigation consistently explained that there is a competitive interaction between the two services, but only one way (that is, consumer communications apps constrain traditional electronic communications services but not the other way around).'—Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 33 (Oct. 3, 2014).

consumer-centered perspective and is one of the differences between the EC's approach and the US ruling scrutinized above.

Despite this diversification of the sources of expertise, the EC is largely dependent on data provided by the Parties:

> 'The Commission notes that the market shares indicated above are likely to underestimate the Parties' position, and present some shortcomings. During the market investigation, the Commission attempted to collect additional metrics to measure the competitive importance of players in the market for consumer communications apps. However, no reliable dataset could be produced.'[216]

This demonstrates that, despite efforts to incorporate the viewpoints of other entities into the proceedings, reliance on data provided by these companies remains unavoidable.

Although the EC noted this dependence with regard to how it calculates market shares, it does not consider it a significant problem for app users. The EC observes that users tend to multihome[217] for communication purposes and that it is easy for them to switch app providers.[218] While the EC acknowledges that network effects are an important factor in the operation of communication apps, it considers several factors that 'mitigate the role of network effects in impeding entry or expansion.'[219] The most important of these factors are the threat of new competitors,[220] multihoming,[221] and the Parties' lack of control over networks or mobile operating systems.[222] Considering all these factors and the rapid pace of evolution in the sector and short innovation cycles, the EC states that the Parties' high market shares are 'not necessarily indicative of market power and, therefore, of lasting damage to competition.'[223]

An important development in this case was a proceeding that took place three years later. The EC issued a decision[224] concerning the information provided by the Parties regarding the possibility of matching users' accounts on Facebook and WhatsApp.[225] The EC argued that Facebook had intentionally or at least negligently supplied incorrect or misleading information'[226] in some documents provided during the proceeding that ended with the 2014

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[216] Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 97 (Oct. 3, 2014).
[217] *See* Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 105 (Oct. 3, 2014).
[218] *See* Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 108–15 (Oct. 3, 2014).
[219] Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 131 (Oct. 3, 2014).
[220] *See* Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 132 (Oct. 3, 2014).
[221] *See* Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 133 (Oct. 3, 2014).
[222] *See* Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 134 (Oct. 3, 2014).
[223] E.g., Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision ¶ 99 (Oct. 3, 2014).
[224] Case COMP/M.8228, Facebook/WhatsApp, Comm's Decision (May 17, 2017).
[225] *See* Case COMP/M.8228, Facebook/WhatsApp, Comm's Decision ¶ 38 (May 17, 2017).
[226] Case COMP/M.8228, Facebook/WhatsApp, Comm's Decision ¶ 38 (May 17, 2017).

decision.[227] It is important to note that a third party raised the possibility of Facebook developing such a function during the first proceeding,[228] but the EC did not consider it a serious threat to competition at the time due to the explanations provided by the Parties. However, in 2017, the EC fined Facebook for infringing on Merger Regulation due to the provision of incorrect or misleading information.

VI. DISCUSSION AND CONCLUSION

The analyzed empirical material indicates that, in the case of *FTC v. Meta Platforms, Inc.*, the company held epistemic power with regard to the expert knowledge provided for the proceedings. This epistemic power encompasses the employees' inside knowledge,[229] the data the company possesses,[230] and how the company uses this data for analyses.[231] This distinguishes the ruling from the analyzed EC's decision, in which other market participants were an important source of information on market characteristics. The qualitative analysis illustrates, however, how the EC was also dependent on data provided by the Parties.[232] Thus, this diversification of invoked sources may be perceived as inspiration for how the EC conceptualized the analytical framework, rather than as the basis for the data used.

The analysis of both cases confirms Rebecca Haw's observation that '…cases requiring market definition are, for all practical purposes, not judge-made but economist-made law.'[233] In the *FTC v. Meta Platforms, Inc.* ruling, the court refers to many legal sources; however, the factual considerations of the substitution between various services constitute the basis for its decision. For this purpose, numerous studies have been conducted, mostly thanks to access to data that Meta has. This kind of epistemic power is crucial because the quality of expert analysis depends on the data or documents used to conduct it.[234] Additionally, the available

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[227] *See* Case COMP/M.8228, Facebook/WhatsApp, Comm's Decision ¶ 38 (May 17, 2017).
[228] 'The Third Party Paper contained statements concerning the possibility of Facebook aggregating user data between FB and WA using a "gateway" between the FB and WA "platforms" enabling cross-platform messaging, "*without [the user] having to take any action*", or by "federating" users' profiles with "*a minimum user interaction required to grant Facebook access to the Whatsapp* [sic] *user ID (phone number)*."—Case COMP/M.8228, Facebook/WhatsApp, Comm's Decision ¶ 62 (May 17, 2017).
[229] *See*, e.g., *Meta Platforms*, ECF No. 705, at 30—the example discussed above.
[230] *See*, e.g., *Meta Platforms*, ECF No. 705, at 30.
[231] *See*, e.g., *Meta Platforms*, ECF No. 705, at 30.
[232] In this case, the quantitative analysis may be misleading: there are six references to the media among those coded as providing 'data,' five refer to the Party's sources, four refer to commercial knowledge providers, and three refer to industry. However, the substance of the decision is based on the Party's data, as explained above.
[233] Haw, *supra* note 66, at 1261.
[234] *See* Rafkin & Kuykendall, *supra* note 123, at 59.

evidence indicates that the Defendant can provide down-to-earth, easy-to-understand statistics, which may increase their significance in the proceedings.[235]

Moreover, the type of information used does not seem to be limited to calculations. In fact, the most important aspect of the *FTC v. Meta Platforms, Inc.* ruling is the interpretation of these calculations.[236] The Defendant's strong position stems not only from its access to relevant data but also from its—presumed by the court—authority to interpret data. Meta's motions that undermine the FTC's analysis confirm the view that they are designed to provide an 'educational experience for the court'[237] about the economic issues in the case. While some claims that *Daubert* motions are almost exclusively defense tools used to attack the plaintiff's case,'[238] in *FTC v. Meta Platforms, Inc.* their use is more ambiguous. However, Meta's experts' role as providers of knowledge on the digital market is clearly visible. As Lopatka and Page observed, a party's presentation of its case 'is guided not only by the applicable legal standards [...] but also by shared conceptualizations of the way the world works.'[239] It seems that the perception of the Defendant's employees as the most qualified experts to explain consumer behavior when using apps belongs to the conceptualization that Meta and the judge share.

The Facebook/WhatsApp proceeding show that, despite including a more diverse range of expertise in its decision-making process—especially knowledge from other market participants—the EC is still very dependent on information from the parties involved. The proceedings also demonstrate that the quality of the information provided may be the subject of the proceedings and result in the EC fining the entity for providing incorrect information. I would argue that one of the reasons why the quality of the information provided is of high importance to the EC is the enforcer's accumulation of knowledge on particular markets, that is, developing its economic authority on the given market. The EC's use of its own decisions as a point of reference can be seen in the Facebook/WhatsApp decision, for example, with respect to justifying certain choices concerning the scope of the relevant geographical market.[240] However, I would posit that the impact of experience collected during antitrust and

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[235] *See* 'Whereas econometric analyses can seem theoretical or complicated, these straightforward data analyses can appeal to courts because they simply quantify the data at hand.'—Rafkin & Kuykendall, *supra* note 123, at 60.
[236] This is important in the light of the typology proposed by Samuel R. Gross and J. L. Mnookin, *Expert Information and Expert Evidence: A Preliminary Taxonomy*, 34(1) SETON HALL L. REV. 141 (2003). The way that exhibits are used seems to indicate that there are accompanied by certain narrative which leads to some of the calculations being considered as more important than other, as shown by the exclusion of the off-device time from the interpretation of List's experiment mentioned in Part V.
[237] Panner, *supra* note 191.
[238] Gavil, *supra* note 39, at 188.
[239] Lopatka & Page, *supra* note 14, 623.
[240] E.g., Case COMP/M.7217—Facebook/WhatsApp, Comm'n Decision footnotes 9–10 at 6 (Oct. 3, 2014).

merger proceedings concerning digital markets extends beyond competition law. In its dual role as enforcer and institution with legislative initiative,[241] the EC may apply experience from one domain to another. Such regulatory responses could offer solutions to some of the problems arising from the extent of the platform's epistemic power, which I explore in the following section.

A. REGULATORY RESPONSE AS THE SOLUTION TO THE CHALLENGES CAUSED BY PLATFORM'S EPISTEMIC POWER

The adoption of the DMA can be viewed as the answer to challenges experienced by the EC in its capacity as an enforcer of competition law. This regulation allows the EC to designate companies as gatekeepers and oblige them to comply with a set of predefined prohibitions and obligations.[242] Although the DMA only uses the phrase 'competition law' once, in Recital 10, stating that 'since this Regulation aims to complement the enforcement of competition law, it should apply without prejudice to Articles 101 and 102 TFEU,'[243] research on the character of this regulation shows that the obligations and prohibitions included in this legal act are based on competition law proceedings.[244] However, implementing ex ante obligations and prohibitions reduces the importance of access to relevant data for the proceeding because the enforcer is not required to demonstrate that the practice is anticompetitive. Instead, it is presumed that the given behavior diminishes fairness and contestability—the values that the DMA aims to protect.

The characteristics of the DMA that limit the epistemic power of the platform include, firstly, introducing the concept of gatekeepers and granting the EC the power to designate them. This alters the dynamics compared to the requirement to demonstrate a dominant position under antitrust law. The DMA defines ten core platform services,[245] which can be compared to the relevant product markets under antitrust law. Providers of these services must notify the EC when they reach certain quantitative thresholds relating to their turnover, number of users, and

[241] *See* Consolidated Version of the Treaty on the Functioning of the European Union art. 294(2), Oct. 26, 2012, 2012 O.J. (C 326) 47, 173.
[242] For a comprehensive commentary to the DMA, see RUPPRECHT PODSZUN, DIGITAL MARKETS ACT: ARTICLE-BY-ARTICLE COMMENTARY (2024).
[243] Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), recital 10, 2022 O.J. (L 265) 1, 3.
[244] *See* Jacques Crémer et al., *Enforcing the Digital Markets Act: Institutional Choices, Compliance, and Antitrust*, 11 J. ANTITRUST ENF'T 315, 331 (2023).
[245] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 2(2), 2022 O.J. (L 265) 1, 28.

how long they have met these thresholds.[246] Based on this information, the EC makes a decision to designate (or not) a company as a gatekeeper with respect to a particular type of core platform service.[247] If the company does not provide the relevant information, the EC may still designate it as a gatekeeper based on information collected from other sources.[248] Furthermore, even if the quantitative thresholds are not met, the EC may still designate a given enterprise as a gatekeeper.[249] These measures demonstrate that the DMA aims to facilitate the designation of companies as entities subject to the obligations and prohibitions set out in the DMA, and to speed up the process compared to the way it is organized under antitrust law. Secondly, the DMA requires gatekeepers to demonstrate their compliance with the obligations set out in this regulation.[250] As mentioned above, this approach reverses the responsibility for demonstrating compliance with the law, as it is the gatekeepers' responsibility to proactively document their efforts to fulfil their DMA obligations. If there are doubts about their compliance, the EC may act as the DMA's 'sole enforcer.'[251]

In line with what could be expected due to the use of this phrase to describe the role of the EC under the DMA, the regulation mostly enhances the EC's power. This includes its economic authority. Examples of such measures include the EC's power to adopt delegated acts that specify the methodology for determining whether the quantitative thresholds are used to designate gatekeepers[252] or to supplement the DMA with regard to the obligations set out in Articles 5 and 6.[253] To a certain extent, the DMA also includes solutions that could strengthen the EC's power by intervening in scope of the gatekeepers' epistemic power concerning access to evidence. For example, it explicitly allows for the possibility of requiring gatekeepers to provide access to their algorithms,[254] which is not the case in the regulations defining the EC's

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[246] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 3, 2022 O.J. (L 265) 1, 30.
[247] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 3(4), 2022 O.J. (L 265) 1, 31.
[248] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 3(3), 2022 O.J. (L 265) 1, 31.
[249] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 3(8), 2022 O.J. (L 265) 1, 31.
[250] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 8(1), 2022 O.J. (L 265) 1, 38.
[251] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 38(7), 2022 O.J. (L 265) 1, 57.
[252] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 3(6), 2022 O.J. (L 265) 1, 31.
[253] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), article 12(1), 2022 O.J. (L 265) 1, 40.
[254] *See* Regulation 2022/1925, of the European Parliament and of the Council of 14 September 2022 on Contestable and Fair Markets in the Digital Sector (Digital Markets Act), articles 21(1) and 23(2), 2022 O.J. (L 265) 1, 46–47.

powers within competition law enforcement system.[255] However, it must be noted that the enforcement powers are granted solely to the EC and the role of the national authorities[256] as well as other entities is very limited or, as in the case of private enforcement, unsure.[257]

Thus, while codifying certain practices in the form of a catalogue of prohibitions and obligations for gatekeepers may be recognized as one way to avoid difficulties resulting from platforms' epistemic power, the DMA's enforcement design and the concentration of power in the hands of the EC may be criticized as achieving this at the expense of concentrating the economic authority in the hands of one institution. It may lead to the enforcement being highly dependent on the will of the EC to enforce the DMA.[258] The risks related to granting the EC too much economic authority on the basis of the DMA's enforcement resemble the problems related to the way that such economic authority was exercised in the *FTC v. Meta Platforms, Inc.* ruling by the court.

B. Changing the Role of Non-Expert and In-House Expertise as the Solution to the Challenges Caused by Platform's Epistemic Power

The analysis of the use of expertise in the *FTC v. Meta Platforms, Inc.* ruling confirms the significance of courts in the US legal system as a crucial factor in the 'Atlantic antitrust divide.' As Chase Foster argues, 'policy paradigms can be shaped by courts through their power of judicial review'[259] in the US legal system. The court's analysis of the relevant evidence in the *FTC v. Meta Platforms, Inc.* ruling confirms that it possesses the economic authority described by Lopatka and Page. The ruling is based on certain presumptions that are rooted in economic

[255] For a detailed overview of the relevant provisions, *see* Joanna Mazur, *Access to Data, Databases, and Algorithms in the Digital Markets Act and the Digital Services Act*, *in* Digital Platforms, Competition Law, and Regulation: Comparative Perspectives 87 (Kalpana Tyagi et al. eds., 2024).
[256] For such a perspective, *see* Florian Wagner-von Papp, *Digital Antitrust and the DMA: In Praise of Institutional Diversity* 12 J. Antitrust Enf't 338, 343 (2024): 'The argument seems to be that the enforcement by 27 NCAs with great subject-matter expertise—and often direct experience with the gatekeepers and their practices—would result in inacceptable fragmentation, but enforcement by countless civil courts scattered across the EU with no guaranteed expertise in antitrust or regulatory law is considered acceptable.'
[257] For the analysis of the relevant provisions, *see* Miguel Del Moral Sanchez, *The Devil Is in the Procedure: Private Enforcement in the DMA and the DSA* 9(1) U. Bologna L. Rev. 7, 23–29 (2024).
[258] *See*, for example, 'Centralising enforcement means that the level of enforcement depends on the resources, manpower and will of the central agency. This may change over time and can be subject to political influence. Making enforcement more independent from the Commission would mean a stronger commitment to the regulation of digital gatekeepers.'—Rupprecht Podszun, *Private Enforcement and Gatekeeper Regulation: Strengthening the Rights of Private Parties in the Digital Markets Act* 13(4) J. Eur. Competition L. & Practice 254, 264 (2022).
[259] Foster, *supra* note 13, at 1654.

thought.[260] However, the court's assessment of the reliability of particular pieces of evidence and experts is equally important for the case. The Defendant's employees and experts seem to be the most trustworthy in the judge's eyes. A ruling such as *FTC v. Meta Platforms, Inc.*—highly reliant on the expertise provided by the party—suggests that the judicial model of enforcement might result in restricting the scope for plurality of narratives concerning digital markets. The courts can be viewed as the opposite of agents of change,[261] as the '"gatekeepers" not only of the reliability of experts' economic data and methods under *Daubert*, but of the kinds of competing economic theories and policy arguments that matter.'[262]

In alignment with the conclusions of the study by Ciliberto, Elzinga, and Sokol and the approach of Lopatka and Page, I would argue that the *FTC v. Meta Platforms, Inc.* case demonstrates that the sources of economic authority lie both in 'a body of authoritative economic knowledge adopted by courts-directly or indirectly-from the scholarly literature'[263] and in the knowledge presented in testimonies during a particular proceeding. Thus, alongside the solutions that require a regulatory response to the challenges posed by the epistemic power of platforms, I discuss two solutions concerning the manner in which expertise is employed in proceedings. Although I focus on their implementation in antitrust proceedings, they could also be useful in proceedings resulting from regulatory responses to challenges related to the epistemic power of platforms.[264] The first solution involves shifting the importance of various types of expertise in proceedings, while the second concerns developing in-house expertise.

The broadening of the scope of expertise relevant to the proceedings is not only a conceptual approach adopted for the purposes of this study: it can also be observed in the 2023 version of the US Merger Guidelines and in the form of the portal providing various stakeholders with an opportunity to submit their comments concerning mergers introduced by the FTC (see Part III). Firstly, as discussed in Part III, the catalogue of entities whose market knowledge may be considered by the enforcer has expanded to include merging parties, customers, workers, industry participants, and observers.[265] This suggests that enforcement

[260] One example is the presumption that 'sophisticated corporations act rationally.'—*Meta Platforms*, ECF No. 705, at 34.
[261] For such a perspective *see*, e.g., ''While these economists have helped to mold agency policy, Courts have been stubbornly resistant to abandoning Chicago School principles.'—Mark Glick, *Antitrust and Economic History: The Historic Failure of the Chicago School of Antitrust*, 64 ANTITRUST BULL. 295, 329 (2019).
[262] Lopatka & Page, *supra* note 14, at 621.
[263] Lopatka & Page, *supra* note 14, at 619–20.
[264] For an article which argues for a broad representation of various entities—and, thus, the variety of types of expertise—in the proceedings, *see* Inês Neves, *No enforcement without representation: how participatory democracy can strengthen the Digital Markets Act* 20(3) EUR. COMPETITION J. 675 (2024).
[265] *See* U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, *supra* note 75, at 34.

may rely more heavily on information provided by entities with expertise based on experience of operating in the given market but not as a merging party (e.g., customers, workers, and industry participants). In the *FTC v. Meta Platforms, Inc.* ruling, this type of expertise appears to be used only indirectly, e.g., through customer surveys often conducted by the Defendant, or via the inclusion of testimonies from executives of other tech companies. Compared with the broader scope of competitors' opinions included in the Facebook/WhatsApp decision, the potential role of other market participants as a source of differing market perspectives seems worth exploring—and under 2023 Merger Guidelines, plausible—in proceedings related to digital markets.

Secondly, the evidence that the enforcer may analyze covers market effects in consummated mergers, econometric analysis, economic modelling, and transaction terms.[266] However, against this background, the Merger Guidelines seem to highlight the limitations of using economic models.[267] This suggests that, alongside expanding the catalogue of sources of expertise that could be considered important for the purposes of the proceedings, the enforcer is also expressing reservations about relying solely on economic expertise. As economic models often require data held by companies, this may be interpreted as limiting the platforms' epistemic power. It could be also seen as a more nuanced approach to the role of economic expertise in the proceedings.

Furthermore, potential shifts in the roles played by various sources of expertise during the proceedings may be due to the development of in-house expertise. While it is clear that the enforcer will never have the same level of insider knowledge as the firms whose behavior is analyzed, nor the same resources as the biggest companies,[268] there are areas in which developing internal expertise could lead to more successful cases. For example, as mentioned above, the initial complaint in the *FTC v. Meta Platforms, Inc.* case included only one reference to market shares without explaining how they were calculated. The amended complaint elaborates on this topic by referring to data provided by the private media company

[266] *See* U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, *supra* note 75, at 34–35.

[267] 'Often, such models consider the firms' incentives to change their actions in one or more selected dimensions, such as price, in a somewhat simplified scenario.'—U.S. DEP'T OF JUSTICE & FED. TRADE COMM'N, *supra* note 75, at 36.

[268] For remarks on the problem of the resources, *see* FTC (Holly Vedova, Bureau of Competition), *Making the Second Request Process Both More Streamlined and More Rigorous During this Unprecedented Merger Wave* COMPETITION MATTERS (Sept. 28, 2021), https://www.ftc.gov/enforcement/competition-matters/2021/09/making-second-request-process-both-more-streamlined-more-rigorous-during-unprecedented-merger-wave.

ComScore.[269] This illustrates the challenging position of enforcers, who not only have more limited access to resources, but are also dependent on either the parties' data or external sources to develop their quantitative arguments. While enforcers will always be at a disadvantage compared to companies with regard to the information on markets available to them, there are ways in which this can be improved. For example, enforcers could create coalitions of federal and state enforcers, as happened in the case against Google,[270] or develop the skills and capabilities of their staff, either in-house or in strategic collaborations with universities, as recommended by the ICN Technologist Group.[271] Finally, if the reliability of the sources invoked by the parties is in doubt, the courts could use Rule 706 more often, as suggested by the scholars cited in Part III, to avoid the challenges caused by the use of expert evidence under Rule 702.

Thus, while this study demonstrates the importance of the epistemic power of platforms and the economic authority of judges and enforcers in proceedings concerning digital markets, it also reveals that the relative significance of different types of expertise in such cases can vary. Firstly, as illustrated by the DMA, regulatory response may potentially diminish the role of economic data and analyses, and thus the significance of platforms' epistemic power. Secondly, expanding the scope of entities involved in proceedings and using their expertise, as well as developing in-house expertise by enforcers, may limit platforms' epistemic power. At the same time, amplifying the voices of other market players and providing more compelling expert evidence developed by the enforcers could make the evidence presented by the plaintiffs more convincing to judges, whose strong economic authority in the proceedings remains the core characteristic of the US antitrust enforcement.

[269] *See FTC v. Meta Platforms, Inc.*, No. 1:20-cv-03590, ECF No. 821, ¶ 81–90 (D.D.C. Sep 08, 2021), https://www.courtlistener.com/docket/18735353/82/federal-trade-commission-v-meta-platforms-inc/.
[270] *See United States of America v. Google LLC*, 1:20-cv-03010, ECF No. 1462 (D.D.C. Dec 05, 2025).
[271] *See* ICN TECHNOLOGIST GRP., *supra* note 29, pt. 5.